



Abby Lawson Ins
11615 Spring Cyrs Rd
Tomball TX 77377-8920



FRANCIS X ROJAS
177 KINGSWAY DR
WIMBERLEY TX 78676-5609

Information as of December 22, 2025
Policyholder(s) Page 1 of 2

Francis X Rojas

Policy number

438 532 211

Your Allstate agency is

Abby Lawson Ins

(281) 882-3623



Scan or visit
allstate.com/forms
to access the
Policy Contract.

Welcome to Allstate!

Thank you for choosing Allstate for your Landlords Package insurance. We look forward to protecting what's important to you for many years.

Here's your insurance policy

Along with your new Landlords Package policy, we've included a guide to what's in this package and answers to some common questions.

How to contact us

Please give your Allstate Agent a call at (281) 882-3623 if you have any questions. It's our job to make sure you're in good hands.

Sincerely,

NP210



Your Insurance Coverage Checklist

We're happy to have you as an Allstate customer! This checklist outlines what's in this package and provides answers to some basic questions, as well as any "next steps" you may need to take.

- ☐ **What's in this package?**

See the guide below for the documents that are included.
Next steps: review your *Policy Declarations* to confirm you have the coverages, coverage limits, premiums and savings that you requested and expected. Read any *Endorsements* or *Important Notices* to learn about new policy changes, topics of special interest, as well as required communications. Keep all of these documents with your other important insurance papers.
- ☐ **What about my bill?**

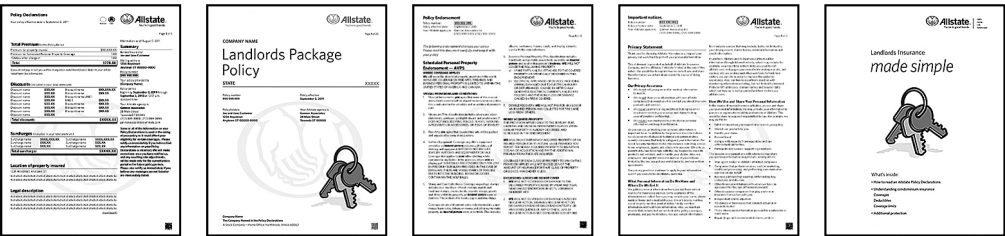
Unless you've already paid your premium in full, we'll send your bill separately. **Next steps:** please pay the minimum amount by the due date listed on it.

You can also pay your bill online at [Allstate.com/support](https://www.allstate.com/support) or through the Allstate mobile app. If you're enrolled in the Allstate® Easy Pay Plan, we'll send you a statement detailing your payment withdrawal schedule. Para español, llamar al 1-800-979-4285.
- ☐ **Am I getting all the discounts I should?**

Confirm with your Allstate Agent that you're benefiting from all the discounts you're eligible to receive.
- ☐ **What if I have questions?**

Visit [Allstate.com/support](https://www.allstate.com/support) to browse our list of frequently asked questions and find information regarding billing or policy documents. You can also create an online account to access and manage your policies. Para español, llamar al 1-800-979-4285.

A guide to your welcome package



- Policy Declarations***

The Policy Declarations lists policy details, such as your property details and coverages.
- Policy**

Your policy is your insurance contract; it lists all of the terms and conditions of your coverage.
- Policy Endorsements**

If changes are made to your policy, these documents will include your new contract language.
- Important Notices**

We use these notices to call attention to particularly important coverages, policy changes and discounts.
- Insurance Made Simple**

Insurance seem complicated? Our online guides explain coverage terms and features:
www.allstate.com/madesimple
Espanol.allstate.com/facildeentender

* To make it easier to see where you may have gaps in your protection, we've highlighted any coverages you do not have in the Coverage Detail section in the enclosed Policy Declarations.

060 072 042 2512225006715 0000004385322112512225006715PRO
PROR16TX2025122223355001A-000027-001-O-00-00



IMPORTANT NOTICE

Have a complaint or need help?

If you have a problem with a claim or your premium, call your insurance company first. If you can't work out the issue, the Texas Department of Insurance may be able to help.

Even if you file a complaint with the Texas Department of Insurance, you should also file a complaint or appeal through your insurance company. If you don't, you may lose your right to appeal.

Allstate Insurance Company

To get information or file a complaint with your insurance company:

Call: Toll Free at 1-800 Allstate® (1-800-255-7828)

Email:

allstatecustomerservicesupport@allstate.com

Mail:

P. O. Box 660598, Dallas, TX 75266-0598

The Texas Department of Insurance

To get help with an insurance question or file a complaint with the state:

Call with a question: 1-800-252-3439

File a complaint: www.tdi.texas.gov

Email: ConsumerProtection@tdi.texas.gov

Mail: P.O. Box 12030, Austin, TX 78711-2030

INSURANCE WEBSITE NOTICE

To compare policies and prices:

Visit **HelpInsure.com** to compare prices and coverages on home and auto insurance policies. The website is a service of the Texas Department of Insurance and the Office of Public Insurance Counsel.

AVISO IMPORTANTE

¿Tiene una queja o necesita ayuda?

Si tiene un problema con una reclamación o con su prima de seguro, llame primero a su compañía de seguros. Si no puede resolver el problema, es posible que el Departamento de Seguros de Texas (Texas Department of Insurance, por su nombre en inglés) pueda ayudar.

Aun si usted presenta una queja ante el Departamento de Seguros de Texas, también debe presentar una queja a través del proceso de quejas o de apelaciones de su compañía de seguros. Si no lo hace, podría perder su derecho para apelar.

Allstate Insurance Company

Para obtener información o para presentar una queja ante su compañía de seguros:

Llame a: Teléfono gratuito al 1-800-255-7828

Correo electrónico:

allstatecustomerservicesupport@allstate.com

Dirección postal:

P. O. Box 660598, Dallas, TX 75266-0598

El Departamento de Seguros de Texas

Para obtener ayuda con una pregunta relacionada con los seguros o para presentar una queja ante el estado:

Llame con sus preguntas al: 1-800-252-3439

Presente una queja en: www.tdi.texas.gov

Correo electrónico: ConsumerProtection@tdi.texas.gov

Dirección postal: P.O. Box 12030, Austin, TX 78711-2030

AVISO DEL SITIO WEB DE SEGURA

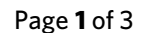
Para comparar pólizas y precios:

Visite **HelpInsure.com** para comparar precios y coberturas en pólizas de seguro para el hogar y automóvil. El sitio web es un servicio del Departamento de Seguros de Texas y de la Oficina del Asesor Público de Seguros (Office of Public Insurance Counsel, por su nombre en inglés).

X67186-6



Your policy effective date is December 12, 2025



Some or all of the information on your Policy Declarations is used in the rating of your policy or it could affect your eligibility for certain coverages. Please notify us immediately if you believe that any information on your Policy Declarations is incorrect. We will make corrections once you have notified us, and any resulting rate adjustments, will be made only for the current policy period or for future policy periods. Please also notify us immediately if you believe any coverages are not listed or are inaccurately listed.



Rating Information* (continued)

Additional details:

Standard wood sash with glass, 100% Interior wall height - 8 ft, 100%
Two exterior wood doors
Fire department subscription - no 4 miles to fire department

Roof surface material type:

Composition
▪ 100% asphalt / fiberglass shingle

**This is a partial list of property details. If the interior of your property includes custom construction, finishes, buildup, specialties or systems, please contact your Allstate representative for a complete description of additional property details.*

Mortgagee

None

Additional Interested Party

None

Coverage detail for the property insured

Coverage	Limits of Liability	Applicable Deductible(s)
Dwelling Protection	\$184,180	▪ \$1,000 All peril
Other Structures Protection	\$18,418	▪ \$1,000 All peril
Personal Property Protection - Reimbursement Provision	\$9,209	▪ \$1,000 All peril
Fair Rental Income Protection	Refer to Policy	
Foundation Water Damage	\$5,000	
Liability Protection	\$300,000 each occurrence	
Premises Medical Protection	\$5,000 each person	
Fire Department Charges	\$500	
Building Codes	Not purchased*	
Loss Assessments	Not purchased*	
Satellite Dish Antennas	Not purchased*	

** This coverage can provide you with valuable protection. To help you stay current with your insurance needs, contact your agent to discuss available coverage options and other products and services that can help protect you.*



Your policy documents

Your Landlords Package policy consists of the Policy Declarations and the following documents. Please keep them together.

- Landlords Package Policy – AS153
- Amending Endorsement – AP4830
- Texas Amending Endorsement – AS512
- Additional Insured for Landlord's Package Policy Texas Limited Liability Company – AS348
- Policyholder Disclosure Notice of Terrorism Insurance Coverage – AP3337-4
- Depreciation Amending Endorsement – AP4970

Please note: The Policy Contract listed as the first item in this section is not mailed and can be found at allstate.com/forms.

You can view your complete Policy Package, including the Policy Contract, on myaccount.allstate.com or request a mailed copy at 1-800 Allstate® (1-800-255-7828). Endorsements to your Policy Contract are only enclosed the first time they apply to your policy and not in subsequent renewal or endorsement packages.

Important payment and coverage information

Here is some additional, helpful information related to your coverage and paying your bill:

- ▶ Please note: This is not a request for payment. Any adjustments to your premium will be reflected on your next scheduled bill which will be mailed separately.

Allstate Indemnity Company's Secretary and President have signed this policy with legal authority at Northbrook, Illinois.

A handwritten signature in black ink that reads "William Hill".

William Hill
President

A handwritten signature in black ink that reads "Christine DeBiase".

Christine DeBiase
Secretary



ALLSTATE INDEMNITY COMPANY

Landlords Package Policy

TEXAS

AS153

Policy number
438 532 211

Policy effective
December 12, 2025

Policyholders
Francis X Rojas
177 Kingsway Dr
Wimberley TX 78676-5609

Your Allstate agency is
Abby Lawson Ins
11615 Spring Cyrs Rd
Tomball TX 77377-8920



Allstate Indemnity Company
The Company Named in the Policy Declarations
A Stock Company---Home Office: Northbrook, Illinois 60062



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General

Definitions Used In This Policy

1. **"Bodily injury"**—means physical harm to the body, including sickness, disability or disease, and resulting death, except that **bodily injury** does not include diseases transmitted through sexual contact, including, but not limited to:

- a) any venereal disease;
- b) herpes;
- c) Acquired Immune Deficiency Syndrome (AIDS);
- d) AIDS Related Complex (ARC);
- e) Human Immunodeficiency Virus (HIV);

or any resulting symptom, effect, condition, disease or illness related to a) through e) listed above.

Under **Premises Medical Protection–Coverage Y**, **bodily injury** means physical harm to the body, including sickness or disease, except that **bodily injury** does not include diseases transmitted through sexual contact, including, but not limited to:

- a) any venereal disease;
- b) herpes;
- c) Acquired Immune Deficiency Syndrome (AIDS);
- d) AIDS Related Complex (ARC);
- e) Human Immunodeficiency Virus (HIV);

or any resulting symptom, effect, condition, disease or illness related to a) through e) listed above.

2. **"Building structure"**—means a structure with walls and a roof.
3. **"Business"**—means any full- or part-time activity of any kind engaged in for economic gain and the use of any part of any premises for such purposes. However, the lawful rental or lease, or holding for rental or lease, of the **residence premises** will not be considered a **business**.
4. **"Business day"**—means a day other than a Saturday, Sunday or holiday recognized by the state of Texas.
5. **"Dwelling"**—means a one-, two-, three-, or four-family **building structure** which is used principally as a private residence and located at the address stated on the Policy Declarations.
6. **"Insured person(s)"**—means:
 - a) if **you** are shown on the Policy Declarations as an individual and **you** are a sole proprietor, **you** and **your** resident spouse.
 - b) if **you** are shown on the Policy Declarations as a partnership or joint venture, the named partnership or joint venture, including any of its partners or members individually while acting within the course and scope of their duties in connection with the ownership, maintenance or use of the **residence premises**.
 - c) if **you** are shown on the Policy Declarations as an organization other than a partnership or joint venture, the organization directors, trustees or governors of the organization while acting

within the course and scope of their duties in connection with the ownership, maintenance or use of the **residence premises**.

- d) **your** employees, while acting within the course and scope of their employment in connection with the ownership, maintenance or use of the **residence premises**.
- e) any person or organization while acting as **your** real estate manager for the **residence premises**.

This policy does not apply to **bodily injury**, **personal injury** or **property damage** arising from the conduct of any partnership, joint venture or organization which is not named on the Policy Declarations as the insured.

7. **"Occurrence"**—means:
 - a) under **Liability Protection–Coverage X**, an accident during the policy period, including continued and repeated exposure to substantially the same general harmful conditions during the policy period, resulting in **bodily injury**, **personal injury** or **property damage** and arising from the ownership, maintenance or use of the **residence premises**.
 - b) under **Premises Medical Protection–Coverage Y**, an accident during the policy period, including continued and repeated exposure to substantially the same general harmful conditions during the policy period, resulting in **bodily injury** and arising from the ownership, maintenance or use of the **residence premises**.
8. **"Personal injury"**—means damages resulting from:
 - a) false arrest; false imprisonment; wrongful detention;
 - b) wrongful entry; invasion of rights of occupancy; wrongful eviction;
 - c) libel; slander; humiliation; defamation of character; invasion of rights of privacy.
9. **"Property damage"**—means physical harm to or destruction of tangible property, including loss of its use resulting from such physical harm or destruction. **Property damage** does not include theft or conversion of property by an **insured person**.
10. **"Rental Unit"**—means that portion of **your dwelling** which forms separate living space intended for **tenant** occupancy.
11. **"Residence premises"**—means **your dwelling**, other structures and land located at the address stated on the Policy Declarations.
12. **"Tenant"**—means any person who rents, leases or lawfully occupies a **rental unit**.
13. **"Vandalism"**—means willful or malicious conduct resulting in damage or destruction of property. **"Vandalism"** does not include theft of property.
14. **"We", "us", or "our"**—means the company named on the Policy Declarations.
15. **"You" or "your"**—means the person(s), partnership, joint venture, or organization specifically named on the Policy Declarations as the insured.



Policy number:

438 532 211

Policy effective date:

December 12, 2025

Insuring Agreement

In reliance on the information **you** have given **us**, **we** agree to provide the coverages indicated on the Policy Declarations. In return, **you** must pay the premium when due, comply with the policy terms and conditions, and inform **us** of any change in title or use of the **residence premises**.

Subject to the terms of this policy, the Policy Declarations shows the location of the **residence premises**, applicable coverages, limits of liability and premiums. The policy applies only to losses or **occurrences** that take place during the policy period. The policy period is shown on the Policy Declarations. This policy is not complete without the Policy Declarations.

The terms of this policy impose joint obligations on persons defined as an **insured person**. This means that the responsibilities, acts and failures to act of a person defined as an **insured person** will be binding upon every other person defined as an **insured person**, except as provided under **Losses We Do Not Cover Under Coverage A Or Coverage B And Coverage C, A.8. and Losses We Do Not Cover Under Coverage C, A.8.**

Conformity To State Statutes

When a policy provision conflicts with the statutes of the state in which the **residence premises** is located, the provision is amended to conform to such statutes.

Coverage Changes

When **we** broaden coverage during the premium period without charge, **you** have the broadened coverage if **you** have purchased the coverage to which the changes apply. The broadened coverage applies on the date the coverage change is effective in **your** state. Otherwise, the policy can be changed only by endorsement.

The coverage provided and the premium for the policy is based on information **you** have given **us**. **You** agree to cooperate with **us** in determining if this information is correct and complete. **You** agree that if this information changes or is incorrect or incomplete, **we** may adjust **your** coverage and premium accordingly during the policy period.

Any calculation of **your** premium or changes in **your** coverage will be made using the rules, rates and forms on file, if required, for **our** use in **your** state. The rates in effect at the beginning of **your** current premium period will be used to calculate any change in **your** premium.

Policy Transfer

You may not transfer this policy to another person or organization without **our** written consent.

Residential Community Property

This policy, subject to all other terms and conditions, when covering residential community property, as defined by state law, shall remain in full force and effect as to the interest of each spouse covered, irrespective of divorce or change of ownership between the spouses unless excluded by endorsement attached to this policy, until the expiration of the policy or until cancelled in accordance with the terms and conditions of this policy.

Continued Coverage After Your Death

If **you** die, coverage will continue until the end of the premium period for:

1. **Your** legal representative while acting as such, but only with respect to the **residence premises** and property covered under this policy on the date of **your** death.
2. An **insured person**, and any person having proper temporary custody of **your** property until a legal representative is appointed and qualified.

Dividend Provision—Participating Companies

To the extent and upon the conditions fixed and determined from time to time by **our** Board of Directors in accordance with the provisions of the Texas Insurance Code of 1951, as amended, **you** shall be entitled to participate in a distribution of **our** surplus.

Cancellation

Your Right to Cancel

You may cancel this policy at any time by notifying **us** of the date cancellation is to take effect.

Our Right to Cancel

We may cancel this policy only for the reasons stated in this condition by giving **you** notice in writing of the date cancellation takes effect.

If this policy has been in effect for less than 60 days and is not a renewal policy, **we** may cancel this policy for any reason.

The effective date of cancellation cannot be before:

1. the 10th day after **we** mail notice if **we** cancel for non-payment of premium.
2. the 30th day after **we** mail notice if **we** cancel for any other reason.

If this policy has been in effect 60 days or more, **we** may not cancel this policy unless:

1. **you** do not pay the premium or any portion of the premium when due.
2. **you** obtained the policy through fraud or material misrepresentation.
3. there is an increase in hazard covered by this policy that is within **your** control and that would produce an increase in the rate of this policy.
4. loss of **our** reinsurance covering all or part of the risk covered by the policy.
5. **we** are placed in supervision, conservatorship, or receivership and the cancellation is approved or directed by the supervisor, conservator, or receiver.

The effective date of cancellation cannot be before the 10th day after **we** mail the notice. **Our** notice of cancellation will state the reason for cancellation.

We may not cancel this policy solely because **you** are an elected official.

Our mailing the notice of cancellation to **you** will be deemed proof of notice. Coverage under this policy will terminate on the effective date and hour stated on the cancellation notice. **Your** return premium, if any, will be calculated on a pro rata basis and refunded at the time of cancellation or as



soon as possible. However, refund of unearned premium is not a condition of cancellation.

Refusal To Renew

We may not refuse to renew this policy because of claims for losses resulting from natural causes.

We may not refuse to renew this policy solely because **you** are an elected official.

If **we** refuse to renew this policy, **we** must deliver to **you**, or mail to **you** at **your** mailing address shown on the Policy Declarations and any mortgagee named in the Policy Declarations, written notice of refusal to renew no later than the 60th day before the date on which this policy expires. Proof of mailing will be sufficient proof of notice. If the notice is delivered or mailed later than the 60th day before the date on which the policy expires, the coverage remains in effect until the 61st day after the date on which the notice is delivered or mailed.

Misrepresentation, Fraud Or Concealment

We may void this policy if it was obtained by misrepresentation, fraud or concealment of material facts. If we determine that this policy is void, all premiums paid will be returned to **you** since there has been no coverage under this policy.

We do not cover any loss or **occurrence** in which the **insured person** has concealed or misrepresented any material fact or circumstance.

Charge For Insufficient Funds

If at any time, **your** payment of any premium amount due is made by check, electronic transaction, or other remittance which is not honored because of insufficient funds or a closed account, **you** will be charged a fee.

What Law Will Apply

This policy is issued in accordance with the laws of Texas and covers property or risks principally located in Texas. Subject to the following paragraph, the laws of Texas shall govern any and all claims or disputes in any way related to this policy.

If a covered loss to property, or any other **occurrence** for which coverage applies under this policy happens outside Texas, claims or disputes regarding that covered loss to property, or any other covered **occurrence** may be governed by the laws of the jurisdiction in which that covered loss to property, or other covered **occurrence** happened, only if the laws of that jurisdiction would apply in the absence of a contractual choice of law provision such as this.

Where Lawsuits May Be Brought

Subject to the following two paragraphs, any and all lawsuits in any way related to this policy, shall be brought, heard and decided only in a state or federal court located in Texas. Any and all lawsuits against persons not parties to this policy but involved in the sale, administration, performance, or alleged breach of this policy, or otherwise related to this policy, shall be brought, heard and decided only in a state or federal court located in Texas, provided

that such persons are subject to or consent to suit in the courts specified in this paragraph.

If a covered loss to property, or any other **occurrence** for which coverage applies under this policy happens outside Texas, lawsuits regarding that covered loss to property, or any other covered **occurrence** may also be brought in the judicial district where that covered loss to property, or any other covered **occurrence** happened.

Nothing in this provision, **Where Lawsuits May Be Brought**, shall impair any party's right to remove a state court lawsuit to a federal court.

Action Against Us

No one may bring an action against **us** unless there has been full compliance with all policy terms.

Any action against **us** to which neither the **Action Against Us** provision located in **Section I Conditions** nor the **Action Against Us** provision located in **Section II Conditions** applies must be commenced within two years and one day of the date the cause of action accrues.

If an action is brought asserting claims relating to the existence or amount of coverage, or the amount of loss for which coverage is sought, under different coverages of this policy, the claims relating to each coverage shall be treated as if they were separate actions for the purpose of the time limit to commence action.

Arbitration

Any claim or dispute in any way related to this policy, by an **insured person** against **us** or **us** against an **insured person**, may be resolved by arbitration only upon mutual consent of the parties. Arbitration pursuant to this provision shall be subject to the following:

- no arbitrator shall have the authority to award punitive damages or attorney's fees;
- neither of the parties shall be entitled to arbitrate any claims or disputes in a representative capacity or as a member of a class; and
- no arbitrator shall have the authority, without the mutual consent of the parties, to consolidate claims or disputes in arbitration.

SECTION I—YOUR PROPERTY

Dwelling Protection—Coverage A

Property We Cover Under Coverage A:

- Your dwelling**, including attached structures, at the **residence premises**. Fences, and structures connected to **your dwelling** by only a fence, utility line, or similar connection, are not considered attached structures.
- Construction materials and supplies at the **residence premises** for use in connection with **your dwelling**.
- Wall-to-wall carpeting fastened to **your dwelling**.



Property We Do Not Cover Under Coverage A:

1. Any structure or other property covered under **Other Structures Protection-Coverage B**.
2. Land, no matter where located, or the replacement, rebuilding, restoration, stabilization or value of any such land.
3. Satellite dish antennas and their systems, whether or not attached to **your dwelling**.
4. Construction materials and supplies at the **residence premises** for use in connection with structures other than **your dwelling**.

Other Structures Protection-Coverage B**Property We Cover Under Coverage B:**

1. Structures at the address shown on the Policy Declarations separated from **your dwelling** by clear space.
2. Structures connected to **your dwelling** by only a fence, utility line, or similar connection.
3. Construction materials and supplies at the **residence premises** for use in connection with structures, other than **your dwelling**, at the **residence premises**.
4. Wall-to-wall carpeting fastened to **building structures** other than **your dwelling**.
5. Fences at the **residence premises**, whether or not connected to **your dwelling**.

Property We Do Not Cover Under Coverage B:

1. Any structure or other property covered under **Dwelling Protection-Coverage A**.
2. Land, no matter where located, or the replacement, rebuilding, restoration, stabilization or value of any such land.
3. Satellite dish antennas and their systems, whether or not attached to a **building structure**.
4. Construction materials and supplies at the **residence premises** for use in connection with the **your dwelling** or any structure not located at the **residence premises**.

Losses We Cover Under Coverages A and B:

We will cover sudden and accidental direct physical loss to property described in **Dwelling Protection-Coverage A** and **Other Structures Protection-Coverage B** except as limited or excluded in this policy.

Losses We Do Not Cover Under Coverages A and B:

- A. **We** do not cover loss to the property described in **Dwelling Protection-Coverage A** or **Other Structures Protection-Coverage B** consisting of or caused by:
 1. Flood, including, but not limited to, surface water, waves, tidal water or overflow of any body of water, or spray from any of these, whether or not driven by wind.

2. Water or any other substance that backs up through sewers or drains.
3. Water or any other substance that overflows from a sump pump, sump pump well or other system designed for the removal of subsurface water which is drained from a foundation area of a structure.
4. Water or any other substance on or below the surface of the ground, regardless of its source. This includes water or any other substance which exerts pressure on, or flows, seeps or leaks through, any part of the **residence premises**.

We do cover sudden and accidental direct physical loss caused by fire or explosion resulting from items 1. through 4. listed above.

5. Earth movement of any type, including, but not limited to, earthquake, volcanic eruption, lava flow, landslide, subsidence, mudflow, pressure, sinkhole, erosion, or the sinking, rising, shifting, creeping, expanding, bulging, cracking, settling or contracting of the earth. This exclusion applies whether or not the earth movement is combined with water.

We do cover sudden and accidental direct physical loss caused by fire, explosion, or breakage of glass or safety glazing materials resulting from earth movement.

6. Enforcement of any building laws, meaning any ordinance or law regulating the construction, repair or demolition of a building or structure, except as specifically provided in **Section I Additional Protection** under item 9., **Building Ordinance Or Law**.
7. The failure by any **insured person** to take all reasonable steps to save and preserve property when the property is endangered by a cause of loss **we** cover.
8. Loss intentionally caused by an **insured person**. This exclusion will not apply to an innocent spouse or **insured person** who did not contribute to such loss or to the interest of an innocent spouse or **insured person** in the damaged property.
9. Collapse of a **building structure** or any part of a **building structure**, except as specifically provided in **Section I Additional Protection** under item 7., **Collapse**.
10. Soil conditions, including, but not limited to, corrosive action, chemicals, compounds, elements, suspensions, crystal formations or gels in the soil.
11. Any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:
 - a) lead in any form;
 - b) asbestos in any form;
 - c) radon in any form; or
 - d) oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.

We do cover heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location.

12. a) Wear and tear, aging, marring, scratching, deterioration, inherent vice, or latent defect;
- b) Mechanical breakdown;
- c) Growth of trees, shrubs, plants or lawns whether or not such growth is above or below the surface of the ground;
- d) Rust or other corrosion;
- e) Contamination, including, but not limited to, the presence of toxic, noxious, or hazardous gasses, chemicals, liquids, solids or other substances at the **residence premises** or in the air, land or water serving the **residence premises**;
- f) Smog, smoke from the manufacturing of any controlled substance, agricultural smudging and industrial operations;
- g) Settling, cracking, shrinking, bulging or expansion of pavements, patios, foundations, walls, floors, roofs or ceilings;
- h) Insects, rodents, birds or domestic animals. **We** do cover the breakage of glass or safety glazing materials caused by birds; or
- i) Seizure by government authority.

If any of a) through h) cause the sudden and accidental escape of water or steam from a plumbing, heating or air conditioning system, household appliance or fire protective sprinkler system within **your dwelling**, **we** cover the direct physical damage caused by the water or steam. If loss to covered property is caused by water or steam not otherwise excluded, **we** will cover the cost of tearing out and replacing any part of **your dwelling** necessary to repair the system or appliance. This does not include damage to the defective system or appliance from which the water escaped.

However, **we** do not cover any loss, including ensuing loss or the cost of tearing out and replacing any part of **your dwelling**, caused by the discharge or overflow of water or steam from within a plumbing, heating or air conditioning system or household appliance, fire protection or sprinkler system where the source of the discharge or overflow is either below the surface of the ground or is within or below the slab or foundation of the **dwelling**, except as specifically provided in **Section I Additional Protection** under item 10., **Foundation Water Damage**.

13. Freezing of:
 - a) plumbing, fire protective sprinkler systems, heating or air conditioning systems;
 - b) household appliances; or
 - c) swimming pools, hot tubs and spas within the **dwelling**, their filtration and circulation systems;
 or discharge, leakage or overflow from within a), b), or c) above, caused by freezing, while the **building structure** or any **rental unit** in that **building structure** is vacant, unoccupied or being constructed unless **you** have used reasonable care to:

- a) maintain heat in the **building structure** including all **rental units**; or
- b) shut off the water supply and drain the system and appliances in the **building structure**.

14. Freezing, thawing, pressure or weight of water, snow or ice, whether driven by wind or not. This exclusion applies to:
 - a) fences, pavements, patios, foundations, retaining walls, bulkheads, piers, wharves and docks; and
 - b) swimming pools, hot tubs, spas, their filtration and circulation systems if the swimming pool, hot tub or spa is not located within a heated portion of the **dwelling**.
15. Seepage, meaning continuous or repeated seepage or leakage over a period of weeks, months, or years, of water, steam or fuel:
 - a) from a plumbing, heating, air conditioning or automatic fire protection system or from within a domestic appliance; or
 - b) from within or around any plumbing fixtures, including, but not limited to, shower stalls, shower baths, tub installations, sinks or other fixtures designed for the use of water or steam.
16. Theft or burglary. However, **we** will cover damage to the exterior of covered **building structures** caused by the breaking in of a burglar or burglars if the **dwelling** is completed and has not been vacant or unoccupied for more than 60 consecutive days immediately prior to the loss. When **we** cover damage to the exterior of covered **building structures** caused by a burglar or burglars, **we** will also cover damage to interior surfaces of exterior doors and windows damaged by the break-in.
17. **Vandalism**. However, **we** do cover sudden and accidental direct physical loss caused by fire resulting from **vandalism** unless **your dwelling** has been vacant or unoccupied for more than 60 consecutive days immediately prior to the **vandalism**.
18. Any act of a **tenant**, or guests of a **tenant**, unless the act results in sudden and accidental direct physical loss caused by:
 - a) fire;
 - b) explosion;
 - c) vehicles;
 - d) smoke. However, **we** do not cover loss caused by smoke from the manufacturing of controlled substances, agricultural smudging or industrial operations;
 - e) increase or decrease of artificially generated electrical current to electrical appliances, fixtures and wiring;
 - f) bulging, burning, cracking or rupture of a steam or hot water heating system, an air conditioning system, an automatic fire protection system or an appliance for heating water;
 - g) water or steam that escapes, due to accidental discharge or overflow, from a plumbing, heating or air conditioning system, an automatic fire protection system, or a household appliance; or
 - h) freezing of a plumbing, heating or air conditioning system or a household appliance.



19. Weather conditions that contribute in any way with a cause of loss excluded under **Losses We Do Not Cover Under Coverages A and B** to produce a loss.

20. Planning, Construction or Maintenance, meaning faulty, inadequate or defective:

- planning, zoning, development, surveying, siting;
- design, specifications, workmanship, repair, construction, renovation, remodeling, grading, compaction;
- materials used in repair, construction, renovation or remodeling; or
- maintenance

of property whether on or off the **residence premises** by any person or organization.

21. Discharge or overflow of water or steam from within a plumbing, heating or air conditioning system, household appliance, fire protection or sprinkler system where the source of the discharge or overflow is either below the surface of the ground or within or below the slab or foundation of the **dwelling**, except as specifically provided in **Section I Additional Protection** under item 10., **Foundation Water Damage**.

- B. **We do not cover loss to property described in Dwelling Protection-Coverage A or Other Structures Protection-Coverage B** when:

- there are two or more causes of loss to the covered property; and
- the predominant cause(s) of loss is (are) excluded under items A.1. through A.21. above.

- C. **We do not cover loss to property described in Dwelling Protection-Coverage A or Other Structures Protection-Coverage B** consisting of or caused by mold, fungus, wet rot, dry rot or bacteria. This includes any loss which, in whole or in part, arises out of, is aggravated by or results from mold, fungus, wet rot, dry rot or bacteria.

This exclusion applies regardless of whether mold, fungus, wet rot, dry rot or bacteria arises from any other cause of loss, including but not limited to a loss involving water, water damage or discharge, which may otherwise be covered by this policy, except as specifically provided in **Section I Conditions, Mold, Fungus, Wet Rot And Dry Rot Remediation As A Direct Result Of A Covered Water Loss**.

- D. **We do not cover loss to the property described under Dwelling Protection-Coverage A or Other Structures Protection-Coverage B** consisting of or caused by the following. These exclusions apply regardless of whether any other cause contributed concurrently or in any sequence to produce the loss:

- Nuclear action, meaning nuclear reaction, discharge, radiation or radioactive contamination, or any consequence of any of these. Loss caused by nuclear action is not considered loss by fire, explosion or smoke.

We do cover sudden and accidental direct physical loss by fire resulting from nuclear action.

- War or warlike acts, including, but not limited to, insurrection, rebellion or revolution.

Personal Property Protection-Coverage C

Property We Cover Under Coverage C:

Personal property owned or used by an **insured person** which is rented or held for rental with the **residence premises**, or used for the service of the **residence premises**. Coverage applies only while the personal property is on the **residence premises**, or while it is temporarily removed for repairs.

Property We Do Not Cover Under Coverage C:

- Personal property specifically described and insured by this or any other insurance.
- Animals.
- Motorized land vehicles, including, but not limited to, any land vehicle powered or assisted by a motor or engine. **We do not cover any motorized land vehicle parts, equipment or accessories. We do, however, cover motorized land vehicles and their parts, equipment and accessories used solely for the service of the residence premises if not licensed for use on public roads.**
- Aircraft and aircraft parts.
- Watercraft, including their trailers, furnishings, equipment and motors.
- Outdoor signs.
- Property of roomers, boarders or **tenants**.
- Any device, cellular communication system, radar signal reception system, accessory or antenna designed for reproducing, detecting, receiving, transmitting, recording or playing back data, sound or picture which may be powered by electricity from a motorized land vehicle or watercraft.
- Satellite dish antennas and their systems.

Losses We Cover Under Coverage C:

We will cover sudden and accidental direct physical loss to the property described in Personal Property Protection-Coverage C, except as limited or excluded in this policy, caused by:

- Fire or lightning.

However, **we do not cover loss caused by fire resulting from vandalism if your dwelling has been vacant or unoccupied for more than 60 consecutive days immediately prior to the vandalism.**

- Windstorm or hail.

We do not cover loss to covered property inside a building structure, caused by rain, snow, sleet, sand or dust unless direct force of the wind or hail first makes an opening in the roof or walls and the wind forces rain, snow, sleet, sand or dust through this opening to cause the damage.

- Explosion.



4. Riot or Civil Commotion, including pillage and looting during, and at the site of, the riot or civil commotion.
5. Aircraft, including self-propelled missiles and spacecraft.
6. Vehicles.
7. Smoke.

We do not cover loss caused by smoke from the manufacturing of controlled substances, agricultural smudging or industrial operations.

8. Falling objects.

We do not cover loss to personal property inside a **building structure** unless the falling object first damages an exterior wall or roof of the **building structure**. Damage to the falling object itself is not covered.

9. Weight of ice, snow or sleet which causes damage to personal property in a **building structure**, but only if the **building structure** is damaged due to the weight of ice, snow or sleet.
 10. Increase or decrease of artificially generated electrical current to electrical appliances, fixtures and wiring.
 11. Breakage of glass, meaning damage to covered personal property caused by breakage of glass constituting a part of any **building structure** on the **residence premises**. This does not include damage to the glass.
 12. Bulging, burning, cracking or rupture of a steam or hot water heating system, an air conditioning system, an automatic fire protection system or an appliance for heating water.
 13. Water or steam that escapes from a plumbing, heating or air conditioning system, an automatic fire protection system, or from a household appliance due to accidental discharge or overflow. However, **we** do not cover loss, including ensuing loss or the cost of tearing out and replacing any part of **your dwelling**, caused by the discharge or overflow of water or steam from within a plumbing, heating or air conditioning system, household appliance fire protection or sprinkler system where the source of the discharge or overflow is either below the surface of the ground or within or below the slab or foundation of the **dwelling**, except as specifically provided in **Section I Additional Protection**, under item 10., **Foundation Water Damage**.
- We** do not cover loss to the system or appliance from which the water or steam escapes, or loss from water which backs up through sewers or drains or overflows from a sump pump, sump pump well or other system designed for the removal of subsurface water which is drained from a foundation area of a structure.
14. Freezing of a plumbing, heating or air conditioning system or a household appliance.

We do not cover loss to any covered property in a **building structure** or any **rental unit** at the **residence premises** under perils 12., 13., and 14. caused by or resulting from freezing while the **building structure** or any

rental unit in that **building structure** is vacant, unoccupied or under construction unless **you** have used reasonable care to:

- a) maintain heat in the **building structure** including all **rental units**; or
- b) shut off the water supply and drain the system and appliances in the **building structure**.

Losses We Do Not Cover Under Coverage C:

- A. **We** do not cover loss to the property described in **Personal Property Protection-Coverage C** consisting of or caused by:

1. Flood, including, but not limited to, surface water, waves, tidal water or overflow of any body of water, or spray from any of these, whether or not driven by wind.
2. Water or any other substance that backs up through sewers or drains.
3. Water or any other substance that overflows from a sump pump, sump pump well or other system designed for the removal of subsurface water which is drained from a foundation area of a structure.
4. Water or any other substance on or below the surface of the ground, regardless of its source. This includes water or any other substance which exerts pressure on, or flows, seeps or leaks through any **residence premises**.

We do cover sudden and accidental direct physical loss caused by fire or explosion resulting from items 1. through 4. listed above.

5. Earth movement of any type, including, but not limited to, earthquake, volcanic eruption, lava flow, landslide, subsidence, mudflow, pressure, sinkhole, erosion, or the sinking, rising, shifting, creeping, expanding, bulging, cracking, settling or contracting of the earth. This exclusion applies whether or not the earth movement is combined with water.

We do cover sudden and accidental direct physical loss caused by fire, explosion, or breakage of glass or safety glazing materials resulting from earth movement.

6. Enforcement of any building codes, ordinances or laws regulating the construction, reconstruction, maintenance, repair, placement or demolition of any **building structure**, other structure or land at the **residence premises**.

We do cover sudden and accidental direct physical loss to covered property caused by actions of civil authority to prevent the spread of fire.

7. The failure by any **insured person** to take all reasonable steps to save and preserve property when the property is endangered by a cause of loss **we** cover.
8. Loss intentionally caused by an **insured person**. This exclusion will not apply to an innocent spouse or **insured person** who did not contribute to such loss or to the interest of an innocent spouse or **insured person** in the damaged property.



9. Any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:
- lead in any form;
 - asbestos in any form;
 - radon in any form; or
 - oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.

We do cover heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location.

10. Weather conditions that contribute in any way with a cause of loss excluded under **Losses We Do Not Cover Under Coverage C** to produce a loss.
11. Planning, Construction or Maintenance, meaning faulty, inadequate or defective:
- planning, zoning, development, surveying, siting;
 - design, specifications, workmanship, repair, construction, renovation, remodeling, grading, compaction;
 - materials used in repair, construction, renovation or remodeling; or
 - maintenance

of property whether on or off the **residence premises** by any person or organization.

12. Discharge or overflow of water or steam from within a plumbing, heating or air conditioning system, household appliance, fire protection or sprinkler system where the source of the discharge or overflow is either below the surface of the ground or within or below the slab or foundation of the **dwelling**, except as specifically provided in **Section I Additional Protection** under item 10., **Foundation Water Damage**.

- B. **We** do not cover loss to property described in **Personal Property Protection-Coverage C** when:
- there are two or more causes of loss to the property; and
 - the predominant cause(s) of loss is (are) excluded under items A.1 through A.12 above.
- C. **We** do not cover loss to property described in **Personal Property Protection-Coverage C** consisting of or caused by mold, fungus, wet rot, dry rot or bacteria. This includes any loss which, in whole or in part, arises out of, is aggravated by or results from mold, fungus, wet rot, dry rot or bacteria.

This exclusion applies regardless of whether mold, fungus, wet rot, dry rot or bacteria arises from any other cause of loss, including, but not limited to, a loss involving water, water damage or discharge, which may otherwise be covered by this policy, except as specifically provided in **Section I Conditions, Mold, Fungus, Wet Rot And Dry Rot Remediation As A Direct Result Of A Covered Water Loss**.

- D. **We** do not cover loss to the property described under **Personal Property Protection-Coverage C** consisting of or caused by the following. These exclusions apply regardless of whether any other cause contributed concurrently or in any sequence to produce the loss:

- 1) Nuclear action, meaning nuclear reaction, discharge, radiation or radioactive contamination, or any consequence of any of these. Loss caused by nuclear action is not considered loss by fire, explosion or smoke.

We do cover sudden and accidental direct physical loss by fire resulting from nuclear action.

- 2) War or warlike acts, including, but not limited to, insurrection, rebellion or revolution.

Fair Rental Income-Coverage D

We Will Cover Under Coverage D:

1. **Your** lost fair rental income resulting from a covered loss, less charges and expenses which do not continue, when a loss **we** cover under **Dwelling Protection-Coverage A** makes a **rental unit** uninhabitable. **We** will pay for lost fair rental income for the shortest time required to either repair or replace the **rental unit**, but not to exceed 12 months from the date of the loss which made the **rental unit** uninhabitable.

In no event shall our payment for fair rental income under **Coverage D**, item 1., exceed an amount equal to 10% of the Limit Of Liability shown on the Policy Declarations under **Dwelling Protection-Coverage A**.

2. Up to \$100 per day per **rental unit**, for up to 2 weeks, to assist with **your** lost fair rental income, less charges and expenses which do not continue, should civil authorities prohibit use of the **dwelling** due to a loss at a neighboring premises caused by a peril **we** insure against under this policy.

However, payments for **your** lost fair rental income due to remediation of mold, fungus, wet rot or dry rot will not be paid in addition to any payments paid or payable under **Section I Conditions, Mold, Fungus, Wet Rot And Dry Rot Remediation As A Direct Result Of A Covered Water Loss**.

The periods of time referenced above are not limited by the termination of this policy.

This protection begins only after **you** have given **us** notice of the covered loss and only if, at the time of the loss, the **rental unit** was habitable and:

- a) occupied by a **tenant**; or
- b) **you** had a signed, written rental agreement for the **rental unit**, in which case this protection begins on the occupancy date specified in the rental agreement; or
- c) the **rental unit** was occupied by a **tenant** within 60 days of the loss and was in the process of being renovated.

We do not cover loss or expense due to the cancellation of a lease or agreement.

No deductible applies to this protection.

Section I Additional Protection

1. Debris Removal

We will pay reasonable expenses **you** incur to remove debris of covered property damaged by a loss **we** cover. If the loss to the covered property and the cost of debris removal are more than the Limit Of Liability shown on the Policy Declarations for the covered property, **we** will pay up to an additional 5% of that limit for debris removal.

2. Trees, Shrubs, Plants And Lawns

We will pay up to an additional 5% of the Limit Of Liability shown on the Policy Declarations under **Dwelling Protection-Coverage A** for loss to trees, shrubs, plants and lawns at the address of the **residence premises**. **We** will not pay more than \$500 for any one tree, shrub, or plant, including expenses incurred for removing debris. This coverage applies only to direct physical loss caused by fire or lightning, explosion, riot or civil commotion, aircraft, vehicles, theft or collapse of a **building structure** or any part of a **building structure**.

We will pay up to \$500 for reasonable expenses **you** incur for the removal of debris of trees at the address of the **residence premises** for direct physical loss caused by windstorm, hail, or weight of ice, snow or sleet. The fallen tree must have caused damage to property covered under **Dwelling Protection-Coverage A** or **Other Structures Protection-Coverage B**.

We do not cover trees, shrubs, plants, or lawns grown for **business** purposes.

3. Emergency Removal Of Property

We will pay for sudden and accidental direct physical loss to covered property from any cause while removed from the **residence premises** because of danger from a loss **we** cover. Protection is limited to a 30-day period from the date of removal. This protection does not increase the limit of liability that applies to the covered property.

4. Fire Department Charges

We will pay up to \$500 for service charges made by fire departments called to protect **your** property from a loss **we** cover at the **residence premises**. No deductible applies to this protection.

5. Temporary Repairs After A Loss

We will reimburse **you** up to \$5,000 for the reasonable and necessary cost **you** incur for temporary repairs to protect covered property from further imminent covered loss following a loss **we** cover. This coverage does not increase the limit of liability applying to the property being repaired.

6. Arson Reward

We will pay up to \$5,000 for information leading to an arson conviction in connection with a fire loss to property covered under **Section I** of this policy. The \$5,000 limit applies regardless of the number of persons providing information.

7. Collapse

We will cover at the **residence premises**:

- the entire collapse of a covered **building structure**;
- the entire collapse of part of a covered **building structure**; and
- direct physical loss to covered property caused by a) or b) above.

For coverage to apply, the collapse of a **building structure** specified in a) or b) above must be a sudden and accidental direct physical loss caused by one or more of the following:

- a loss **we** cover under **Section I, Personal Property Protection-Coverage C**;
- weight of persons, animals, equipment or contents;
- weight of rain, snow or ice which collects on a roof;
- defective methods or materials used in construction, repair, remodeling or renovation, but only if the collapse occurs in the course of such construction, repair, remodeling or renovation.

We will not cover the collapse of underground septic tanks, fuel oil tanks, cesspools, cisterns or similar structures.

Loss to an awning, fence, patio deck, pavement, swimming pool, foundation, retaining wall, bulkhead, pier, wharf or dock is not included, unless the loss is a direct result of the collapse of a **building structure** or part of a **building structure** that is a sudden and accidental direct physical loss caused by one or more of the following:

- a loss **we** cover under **Section I, Personal Property Protection-Coverage C**;
- weight of persons, animals, equipment or contents; weight of rain, snow or ice which collects on a roof;
- defective methods or materials used in construction, repair, remodeling or renovation, but only if the collapse occurs in the course of such construction, repair, remodeling or renovation.

Collapse as referenced herein means the covered **building structure** or part of the covered **building structure** has actually fallen down or fallen into pieces unexpectedly and instantaneously. It does not include settling, cracking, shrinking, bulging, expansion, sagging, or bowing. Furthermore, collapse does not include or mean substantial structural impairment or imminent collapse.

This protection does not change the limit of liability applying to the covered property.

8. Land

If a sudden and accidental direct physical loss results in both a covered loss to **your dwelling**, other than the breakage of glass or safety glazing material, and a loss of land stability, **we** will pay up to \$10,000 for repair costs associated with the land. This includes the costs required to replace, rebuild, stabilize or otherwise restore the land necessary to support that part of **your dwelling** sustaining the covered loss.

The **Losses We Do Not Cover Under Coverages A and B** reference to earth movement does not apply to the loss of land stability provided under this **Additional Protection**.



9. Building Ordinance Or Law

You may use up to \$5,000 (at no additional premium) for the increased costs that **you** incur under **Dwelling Protection–Coverage A** or **Other Structures Protection–Coverage B** due to the enforcement of any ordinance or law, which requires or regulates:

- the construction, demolition or repair of that part of **your dwelling** or another covered **building structure** damaged by a covered loss;
- the demolition and reconstruction of the undamaged part of **your dwelling** or another covered **building structure**, when that building or structure must be totally demolished because of a covered loss to another part of **your dwelling** or another covered **building structure**; or
- the remodeling, removal or replacement of the portion of the undamaged part of **your dwelling** or another covered **building structure** necessary to complete the remodeling, repair or replacement of that part of **your dwelling** or another covered **building structure** damaged by a covered loss.

You may use all or part of this **Additional Protection** to pay for the increased costs **you** incur to remove debris resulting from the construction, repair or replacement of property as stated above.

This **Additional Protection** does not reduce the limits of liability under **Dwelling Protection–Coverage A** or **Other Structures Protection–Coverage B**.

We will not pay for the increased cost of construction:

- if **your dwelling** or other covered **building structure** is not rebuilt or repaired;
- if the rebuilt or repaired **dwelling** or other covered **building structure** is not intended for the same type occupancy as the current building or structure;
- until the **dwelling** or other covered **building structure** is actually repaired or rebuilt at the same premises; or
- unless the rebuilding or repairs are made as soon as reasonably possible after the loss or damage, not to exceed 365 days after loss unless **you** have requested in writing that this time limit be extended for an additional 180 days.

We do not cover:

- the loss in value to **your dwelling** or another covered **building structure** due to the requirements of any ordinance or law; or
- the costs to comply with any ordinance or law which requires **you** or others to test for, monitor, clean up, remove, contain, treat, detoxify or neutralize, or in any way respond to, assess the affects of, pollutants on any covered building or other structure.

Pollutants means any solid, liquid, gaseous or thermal irritant or contaminant, including smoke, vapor, soot, fumes, acids, alkalis, chemicals and waste. Waste includes material to be recycled, reconditioned or reclaimed.

If the insured property is located in an area which is eligible for coverage through the Texas Windstorm Insurance Association, the coverage

described above also applies to the increased cost **you** incur due to the repair, replacement or demolition required for the dwelling to comply with the building specifications contained in the Texas Windstorm Insurance Association's plan of operation.

10. Foundation Water Damage

In the event of the sudden and accidental discharge or overflow of water or steam from within a plumbing, heating or air conditioning system, household appliance, fire protection or sprinkler system where the source of the discharge or overflow is located within or below the slab or foundation of the **dwelling**, **we** will pay up to the amount shown on the Policy Declarations for:

- tearing out and replacing any part of the **dwelling** necessary to access, repair or replace that part of such system, and
- loss to property covered under **Dwelling Protection–Coverage A** and **Personal Property Protection–Coverage C** that results from the sudden and accidental escape of water or steam from within a plumbing, heating or air conditioning system, household appliance, fire protection or sprinkler system located within the slab or foundation of the dwelling.

This coverage does not include damage to the system from which the water or steam escaped.

Section I Conditions**1. Deductible**

We will pay when a covered loss exceeds the deductible shown on the Policy Declarations. **We** will then pay only the excess amount, unless **we** have indicated otherwise in this policy. The deductible amount applies to loss or damage caused by any peril other than fire or lightning.

2. Insurable Interest And Our Liability

In the event of a covered loss, **we** will not pay for more than an **insured person's** insurable interest in the property covered, nor more than the amount of coverage afforded by this policy.

Each time there is a loss to any building insured under **Dwelling Protection–Coverage A** or **Other Structures Protection–Coverage B**, the amount of insurance applicable to that building for loss by fire will be reduced by the amount of the loss. As repairs are made, the amount of insurance will be reinstated up to the Limit Of Liability shown on the Policy Declarations.

Section 862.053. Policy A Liquidated Demand. A fire insurance policy, in case of a total loss by fire of property insured, shall be held and considered to be a liquidated demand against the company for the full amount of such policy. The provisions of this article shall not apply to personal property.

3. What You Must Do After A Loss

In the event of a loss to any property that may be covered by this policy, **you** must:

- promptly give **us** or **our** agent notice. Report any loss involving theft, **vandalism** or burglary to the police as soon as possible.



- b) protect the property from further loss. Make any reasonable repairs necessary to protect it. Keep an accurate record of any repair expenses.
- c) separate damaged from undamaged personal property. Give **us** a detailed list of the damaged, destroyed or stolen property, showing the quantity, cost, actual cash value and the amount of loss claimed.
- d) give **us** all accounting records, bills, invoices and other vouchers, or certified copies, which **we** may reasonably request to examine, and permit **us** to make copies.
- e) produce records supporting any claim for loss of fair rental income as often as **we** reasonably require.
- f) as often as **we** reasonably require:
 - 1) show **us** the damaged property.
 - 2) at **our** request, submit to examinations under oath, separately and apart from any other person defined as **you** or **insured person**, and sign a transcript of the same.
 - 3) produce representatives, employees, members of the insured's household or others to the extent it is within the **insured person's** power to do so; and
 - 4) cooperate with **us** in the investigation or settlement of the claim, including providing available information concerning **tenants**; and
- g) within 91 days after the loss, give **us** a signed, sworn proof of the loss. **We** must request a signed, sworn proof of loss not later than the 15th day after **we** receive **your** written notice, or **we** waive **our** right to require a proof of loss. Such waiver will not waive **our** other rights under this policy. This signed, sworn proof of loss must include the following information:
 - 1) the date, time, location and cause of the loss;
 - 2) the interest **insured persons** and others have in the property, including any encumbrances;
 - 3) the actual cash value and amount of loss for each item damaged, destroyed or stolen;
 - 4) any other insurance that may cover the loss;
 - 5) any changes in title, use, occupancy or possession of the property that have occurred during the policy period;
 - 6) at **our** request, the specifications of any damaged **building structure** or other structure.

We have no duty to provide coverage to **you** or an **insured person** under this section if **you**, an **insured person**, or a representative of either fail to comply with items a) through g) above, and this failure to comply is prejudicial to **us**.

4. Our Settlement Options

In the event of a covered loss, **we** have the option to:

- a) repair, rebuild or replace all or any part of the damaged, destroyed or stolen covered property with property of like kind and quality within a reasonable time; or
- b) pay for all or any part of the damaged, destroyed or stolen property as described in Condition 5., **How We Pay For A Loss**.

Not later than the 15th day after **we** receive **your** written notice of claim, **we** must acknowledge receipt of the claim, begin any investigation of the claim, and specify the information **you** must provide.

If **our** acknowledgment of the claim is not in writing, **we** will keep a record of the date, method and content of **our** acknowledgement.

We may request additional information, if during the investigation of the claim such additional information is necessary.

We will notify **you** of the settlement option or options **we** intend to exercise within 15 **business days** after **we** receive **your** signed, sworn proof of loss. This shall be extended to 30 days if **we** have reason to believe the loss resulted from arson.

If **we** do not approve payment of **your** claim, **we** must give the reason for denying **your** claim, or give the reasons **we** require additional time to process **your** claim. But, **we** must either approve or deny **your** claim within 45 days after **our** request for additional time.

5. How We Pay For A Loss

Under **Dwelling Protection-Coverage A, Other Structures Protection-Coverage B** and **Personal Property Protection-Coverage C**, payment for covered loss will be by one or more of the following methods:

- a) Special Payment. At **our** option, **we** may make payment for a covered loss before **you** repair, rebuild or replace the damaged, destroyed or stolen property if:
 - 1) the whole amount of loss for property covered under **Dwelling Protection-Coverage A** and **Other Structures Protection-Coverage B**, without deduction for depreciation, is less than \$2,500 and the property is not excluded from the Building Structure Reimbursement provision; or
 - 2) the whole amount of loss for property covered under **Personal Property Protection-Coverage C**, without deduction for depreciation, is less than \$2,500, **your** Policy Declarations shows that the Personal Property Reimbursement provision applies, and the property is not excluded from the Personal Property Reimbursement provision.
- b) Actual Cash Value. If **you** do not repair or replace the damaged, destroyed or stolen property, payment will be on an actual cash value basis. This means there may be a deduction for depreciation. Payment will not exceed the Limit Of Liability shown on the Policy Declarations for the coverage that applies to the damaged, destroyed or stolen property, regardless of the number of items involved in the loss.

If applicable, **you** may make claim for additional payment as described in paragraph c) and paragraph d) below if **you** repair or replace the damaged, destroyed or stolen covered property within 365 days of the actual cash value payment unless you request in writing that this time limit be extended for an additional 180 days.



- c) **Building Structure Reimbursement.** Under **Dwelling Protection-Coverage A** and **Other Structures Protection-Coverage B**, we will make additional payment to reimburse **you** for cost in excess of actual cash value if **you** repair, rebuild or replace damaged, destroyed or stolen covered property within 365 days of the actual cash value payment unless you request in writing that this time limit be extended for an additional 180 days. This additional payment includes the reasonable and necessary expense for treatment or removal and disposal of contaminants, toxins or pollutants as required to complete repair or replacement of that part of a **building structure** damaged by a covered loss.

This additional payment shall not include any amounts which may be paid or payable under **Section I Conditions, Mold, Fungus, Wet Rot And Dry Rot Remediation As A Direct Result Of A Covered Water Loss**, and shall not be payable for any losses excluded in **Section I—Your Property**, under **Losses We Do Not Cover Under Coverages A and B**, item C.

Building Structure Reimbursement will not exceed the smallest of the following amounts:

- 1) the replacement cost of the part(s) of the **building structure(s)** for equivalent construction for the same use on the same premises;
- 2) the amount actually and necessarily spent to repair or replace the damaged **building structure(s)** with equivalent construction for the same use on the same premises; or
- 3) the limit of liability applicable to the **building structure(s)** as shown on the Policy Declarations for **Dwelling Protection-Coverage A** or **Other Structures Protection-Coverage B**, regardless of the number of **building structures** and structures other than **building structures** involved in the loss.

If **you** replace the damaged **building structure(s)** at an address other than shown on the Policy Declarations through construction of a new structure or purchase of an existing structure, such replacement will not increase the amount payable under Building Structure Reimbursement described above. The amount payable under Building Structure Reimbursement described above does not include the value of any land associated with the replacement structure(s).

Building Structure Reimbursement payment will be limited to the difference between any actual cash value payment made for the covered loss to **building structures** and the smallest of 1), 2), or 3) above.

Building Structure Reimbursement will not apply to:

- 1) property covered under **Personal Property Protection-Coverage C**;
- 2) property covered under **Other Structures Protection-Coverage B** that is not a **building structure**;

- 3) wall-to-wall carpeting, ceramic or vinyl floor coverings, hardwood floors, built-in appliances, fences, awnings and outdoor antennas whether or not fastened to a **building structure**; or
- 4) land.

Payment under a), b) or c) above will not include any increased cost due to the enforcement of building codes, ordinances or laws regulating the construction, reconstruction, maintenance, repair, relocation or demolition of **building structures** or other structures.

- d) **Personal Property Reimbursement.** When the Policy Declarations shows that the Personal Property Reimbursement provision applies under **Personal Property Protection-Coverage C**, we will make additional payment to reimburse **you** for cost in excess of actual cash value if **you** repair, rebuild or replace damaged, destroyed or stolen covered personal property within 180 days of the actual cash value payment.

Personal Property Reimbursement payment will not exceed the smallest of the following amounts:

- 1) the amount actually and necessarily spent to repair or replace the property with similar property of like kind and quality;
- 2) the cost of repair or restoration; or
- 3) the Limit of Liability shown on the Policy Declarations for **Personal Property Protection-Coverage C**.

Personal Property Reimbursement will be limited to the difference between any actual cash value payment made for the covered loss to personal property and the smallest of 1), 2), or 3) above.

Personal Property Reimbursement will not apply to:

- 1) property insured under **Dwelling Protection-Coverage A** or **Other Structures Protection-Coverage B**;
- 2) antiques, fine arts, paintings, statuary and similar articles which, by their inherent nature, cannot be replaced;
- 3) articles whose age or history contribute substantially to their value. This includes, but is not limited to, memorabilia, souvenirs and collector's items;
- 4) property that was obsolete or unusable for the originally intended purpose because of age or condition prior to the loss; or
- 5) wall-to-wall carpeting.

6. **Our Settlement Of Loss**

We will settle any covered loss with **you** unless some other person or entity is named in the policy or is legally entitled to receive payment.

If **we** notify **you** that **we** will pay **your** claim, or part of **your** claim, **we** must make payment not later than the 5th **business day** after **we** notify **you**.

If payment of **your** claim or part of **your** claim requires the performance of an act by **you**, **we** must review the result not later than the 15th day



after **you** perform the act. If **your** action is acceptable, **we** must make payment not later than the 5th **business day** after **our** review is complete.

The amount of loss may be determined by an agreement between **you** and **us**, an appraisal award, or by a court judgment.

7. **Catastrophe Claims**

If a claim results from a weather-related catastrophe or a major natural disaster, each claim-handling deadline shown under the **What You Must Do After A Loss, Our Settlement Options, And Our Settlement Of Loss** provisions is extended for an additional 15 days.

Catastrophe or major natural disaster means a weather-related event which:

- a. is declared a disaster under the Texas Disaster Act of 1975; or
- b. is determined to be a catastrophe by the State Board of Insurance.

8. **Appraisal**

If **you** and **we** fail to agree on the amount of loss, either party may make written demand for an appraisal. Upon such demand, each party must select a competent and impartial appraiser and notify the other of the appraiser's identity within 20 days after the demand is received. The appraisers will select a competent and impartial umpire. If the appraisers are unable to agree upon an umpire within 15 days, **you** or **we** can ask a judge of a court of record in the state where the **residence premises** is located to select an umpire.

The appraisers shall then determine the amount of loss, stating separately the actual cash value and the amount of loss to each item. If the appraisers submit a written report of an agreement to **you** and to **us**, the amount agreed upon shall be the amount of loss. If they cannot agree, they will submit their differences to the umpire. A written award agreed upon by the appraisers or an appraiser and the umpire will determine the amount of loss.

Each party will pay the appraiser it chooses and equally bear expenses for the umpire and all other appraisal expenses.

9. **Abandoned Property**

We are not obligated to accept any property or responsibility for any property abandoned by an **insured person**.

10. **Mortgagee**

A covered loss will be payable to the mortgagees named on the Policy Declarations to the extent of their interest and in the order of precedence. All provisions of **Section I** of this policy apply to these mortgagees.

We will:

- a) protect the mortgagee's interest in a covered **building structure** in the event of an increase in hazard, intentional or criminal acts of, or directed by, an **insured person**, failure by any **insured person** to take all reasonable steps to save and preserve property after a loss, a change in ownership, or foreclosure if the mortgagee has no knowledge of these conditions; and

- b) give the mortgagee at least 10 days notice if this policy is cancelled.

The mortgagee will:

- a) furnish proof of loss within 91 days after notice of the loss if an **insured person** fails to do so;
- b) pay upon demand any premium due if an **insured person** fails to do so;
- c) notify **us** in writing of any change of ownership or occupancy or any increase in hazard of which the mortgagee has knowledge;
- d) give **us** the mortgagee's right of recovery against any party liable for loss; and
- e) after a loss, and at **our** option, permit **us** to satisfy the mortgage requirements and receive full transfer of the mortgage.

This mortgagee interest provision shall apply to any trustee, loss payee or other secured party.

11. **Permission Granted To You**

- a) The **residence premises** may be vacant or unoccupied for any length of time, except where a time limit is indicated in this policy for specific perils. A **building structure** under construction is not considered vacant or unoccupied.
- b) **You** may make alterations, additions or repairs, and **you** may complete structures under construction.

12. **Our Rights To Recover Payment**

When **we** pay for any loss, an **insured person's** rights to recover from anyone else become ours up to the amount **we** have paid. An **insured person** must protect these rights and help **us** enforce them.

You may waive **your** rights to recover against another person for loss involving the property covered by this policy. This waiver must be in writing prior to the date of loss.

13. **Our Rights To Obtain Salvage**

We have the option to take all or any part of the damaged or destroyed covered property upon replacement by **us** or payment of the agreed or appraised value.

We will notify **you** of **our** intent to exercise this option within 30 days after **we** receive **your** signed, sworn proof of loss.

When **we** settle any loss caused by theft or disappearance, **we** have the right to obtain all or part of any property which may be recovered. An **insured person** must protect this right and inform **us** of any property recovered. **We** will inform **you** of **our** intent to exercise this right within 10 days of **your** notice of recovery to **us**.

14. **Action Against Us**

No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under a coverage to which **Section I Conditions** applies, unless:

- a) there has been full compliance with all policy terms; and



- b) the action is commenced within two years and one day after the inception of loss or damage.

15. **Loss To A Pair Or Set**

If there is a covered loss to a pair or set, **we** may:

- repair or replace any part of the pair or set to restore it to its actual cash value before the loss; or
- pay the difference between the actual cash value of the pair or set before and after the loss.

16. **Glass Replacement**

Payment for loss to covered glass includes the cost of using safety glazing materials when required by law.

17. **No Benefit To Bailee**

This insurance will not benefit any person or organization who may be caring for or handling **your** property for a fee.

18. **Other Insurance**

If both this insurance and other insurance apply to a loss, **we** will pay the proportionate amount that this insurance bears to the total amount of all applicable insurance. However, in the event of a covered loss by theft, this insurance shall be excess over any other insurance that covers loss by theft.

19. **Property Insurance Adjustment**

When the Policy Declarations indicates that the Property Insurance Adjustment condition applies, **you** agree that, at each policy anniversary, **we** may increase the Limit Of Liability shown on the Policy Declarations for **Dwelling Protection–Coverage A** to reflect one of the following:

- the rate of change in the Index identified in the Important Payment and Coverage Information section of the Policy Declarations. The limit of liability for **Dwelling Protection–Coverage A** for the succeeding premium period will be determined by changing the existing limit in proportion to the change in the Index between the time the existing limit was established and the time the change is made. The resulting amount will be rounded to the nearest \$1,000; or
- the minimum amount of insurance coverage **we** are willing to issue for the succeeding premium period under **Dwelling Protection–Coverage A** for **your dwelling** and other property **we** cover under **Dwelling Protection–Coverage A**.

Any adjustment in the limit of liability for **Dwelling Protection–Coverage A** will result in an adjustment in the limit of liability for **Other Structures Protection–Coverage B** and **Personal Property Protection–Coverage C** in accordance with **our** manual of Rules and Rates.

Any adjustment in premium resulting from the application of this condition will be made based on premium rates in use by **us** at the time a change in limits is made.

We will not reduce the Limit Of Liability shown on the Policy Declarations without **your** consent. **You** agree that it is **your**

responsibility to ensure that each of the limits of liability shown on the Policy Declarations are appropriate for **your** insurance needs. If **you** want to increase or decrease any of the limits of liability shown on the Policy Declarations, **you** must contact **us** to request such a change.

20. **Mold, Fungus, Wet Rot And Dry Rot Remediation As A Direct Result Of A Covered Water Loss**

In the event of a covered water loss under **Dwelling Protection–Coverage A, Other Structures Protection–Coverage B** or **Personal Property Protection–Coverage C**, **we** will pay up to \$5,000 for mold, fungus, wet rot or dry rot **remediation**.

Remediation means the reasonable and necessary treatment, removal or disposal of mold, fungus, wet rot or dry rot as required to complete repair or replacement of property **we** cover under **Dwelling Protection–Coverage A, Other Structures Protection–Coverage B** or **Personal Property Protection–Coverage C** damaged by a covered water loss. **Remediation** also includes any investigation or testing to detect, measure or evaluate mold, fungus, wet rot or dry rot.

This does not increase the limits of liability under **Dwelling Protection–Coverage A, Other Structures Protection–Coverage B** or **Personal Property Protection–Coverage C**.

SECTION II—LIABILITY PROTECTION AND PREMISES MEDICAL PROTECTION

Liability Protection–Coverage X

Losses We Cover Under Coverage X:

Subject to the terms, conditions and limitations of this policy, **we** will pay damages which an **insured person** becomes legally obligated to pay because of **bodily injury, personal injury, or property damage** arising from a covered **occurrence**.

We may investigate or settle any claim or suit for covered damages against an **insured person**. If an **insured person** is sued for these damages, **we** will provide a defense with counsel of **our** choice, even if the allegations are groundless, false or fraudulent. **We** are not obligated to pay any claim or judgment after **we** have exhausted **our** limit of liability.

Losses We Do Not Cover Under Coverage X:

- We** do not cover **bodily injury, personal injury or property damage** which is caused intentionally by or at the direction of an **insured person**.
- We** do not cover **bodily injury or personal injury** to an **insured person**.
- We** do not cover **property damage** to any:
 - property owned by an **insured person**;
 - property owned by others which an **insured person** agreed to insure or for which an **insured person** agreed to be responsible; or

- c) property rented to, occupied or used by, or in the care of an **insured person**.
4. **We do not cover bodily injury or personal injury** to any person eligible to receive benefits required to be provided or voluntarily provided by an **insured person** under any workers' compensation law, non-occupational disability law, occupational disease law, disability benefits law, or any other similar law.
5. **We do not cover bodily injury, personal injury or property damage** arising out of the ownership, maintenance, use, occupancy, renting, loaning, entrusting, loading or unloading of any:
- aircraft;
 - watercraft; or
 - motorized land vehicle or trailer other than lawn and garden implements under 40 motor horsepower.
6. **We do not cover bodily injury, personal injury or property damage** arising out of the negligent supervision by an **insured person** of any person.
7. **We do not cover any liability imposed on any insured person** by any governmental authority arising from the ownership, maintenance, use, occupancy, renting, loaning, entrusting, loading or unloading of any:
- aircraft;
 - watercraft; or
 - motorized land vehicle or trailer other than lawn and garden implements under 40 motor horsepower.
8. **We do not cover bodily injury or personal injury** which results in any manner from any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:
- lead in any form;
 - asbestos in any form;
 - radon in any form; or
 - oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.
- However, **we do cover bodily injury or personal injury** which results from:
- heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location; or
 - the sudden and accidental discharge, dispersal, release or escape of carbon monoxide from a heating system, an appliance for heating water, or a household appliance located at the **residence premises**.
9. **We do not cover property damage** consisting of or caused by any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:
- lead in any form;
 - asbestos in any form;
 - radon in any form; or

- d) oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.

However, **we do cover property damage** which results from heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location.

10. **We do not cover any liability imposed upon any insured person** by any governmental authority for **bodily injury or personal injury** which results in any manner from, or for **property damage** consisting of or caused by, any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:
- lead in any form;
 - asbestos in any form;
 - radon in any form; or
 - oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.
11. **We do not cover any loss, cost or expense arising out of any request, demand, or order that any insured person test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize, or in any way respond to or access the effects of any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:**
- lead in any form;
 - asbestos in any form;
 - radon in any form; or
 - oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.
12. **We do not cover bodily injury, personal injury or property damage** arising out of the rendering of, or failure to render, professional services by an **insured person**.
13. **We do not cover bodily injury, personal injury or property damage** arising out of the past or present **business** activities of an **insured person**.
14. **We do not cover bodily injury, personal injury or property damage** arising out of any premises, other than the **residence premises**, owned, rented or controlled by an **insured person**.
15. **We do not cover bodily injury, personal injury or property damage** arising from any contract or agreement, whether written or oral.
16. **We do not cover bodily injury, personal injury or property damage** caused by war or warlike acts, including, but not limited to, insurrection, rebellion or revolution.
17. **We do not cover bodily injury, personal injury or property damage** for which an **insured person** may be held legally liable arising out of the sale, distribution, manufacture, service, use or gift or any alcoholic beverage(s) or any controlled or illegal substances.



Policy number:

438 532 211

Policy effective date:

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18. **We** do not cover **personal injury** caused by a violation of a law or ordinance committed:
 - a) by an **insured person**; or
 - b) with an **insured person's** knowledge or consent.
19. **We** do not cover **personal injury** to any person if the **personal injury** arises from that person's employment by an **insured person**.
20. **We** do not cover **personal injury** arising from the publication of libelous or defamatory remarks or from the utterance of slanderous or defamatory remarks:
 - a) if the initial publication or utterance of the same or similar material by or on behalf of an **insured person** occurred prior to the effective date of this insurance.
 - b) made by or at the direction of an **insured person** with awareness of the falsity of such remarks.
21. **We** do not cover **personal injury** arising from illegal discrimination.
22. **We** do not cover **bodily injury, personal injury or property damage** which, in whole or in part, arises out of, is aggravated by or results from mold, fungus, wet rot, dry rot or bacteria.
23. **We** do not cover any liability imposed upon any **insured person** by any governmental authority for **bodily injury, personal injury or property damage** which, in whole or in part, arises out of, is aggravated by or results from mold, fungus, wet rot, dry rot or bacteria.

Premises Medical Protection-Coverage Y

Losses We Cover Under Coverage Y:

We will pay the reasonable expenses incurred for necessary medical, surgical, X-ray and dental services; ambulance, hospital, licensed nursing and funeral services; and prosthetic devices, eyeglasses, hearing aids, and pharmaceuticals. These expenses must be incurred and the services performed within three years from the date of an **occurrence** resulting in **bodily injury** covered by this part of the policy.

Payment will be made only if **bodily injury**:

1. arises from a condition on the **residence premises** or immediately adjoining ways; or
2. arises from an **occurrence** for which indemnification is provided under **Liability Protection-Coverage X** of this policy.

Losses We Do Not Cover Under Coverage Y:

1. **We** do not cover **bodily injury** which is caused intentionally by or at the direction of an **insured person**.
2. **We** do not cover **bodily injury** to any person eligible to receive benefits required to be provided or voluntarily provided by an **insured person** under any workers' compensation law, non-occupational disability law, occupational disease law, disability benefits law, or any other similar law.
3. **We** do not cover **bodily injury** arising out of the ownership, maintenance, use, occupancy, renting, loaning, entrusting, loading or unloading of any:

- a) aircraft;
- b) watercraft; or
- c) motorized land vehicle or trailer other than lawn and garden implements under 40 motor horsepower.

4. **We** do not cover **bodily injury** arising out of the negligent supervision by an **insured person** of any person.

5. **We** do not cover any **bodily injury** to an **insured person**.

6. **We** do not cover **bodily injury** which results in any manner from any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:
 - a) lead in any form;
 - b) asbestos in any form;
 - c) radon in any form; or
 - d) oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the **residence premises**.

However, **we** do cover **bodily injury** or **personal injury** which results from:

- a) heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location; or
- b) the sudden and accidental discharge, dispersal, release or escape of carbon monoxide from a heating system, an appliance for heating water, or a household appliance located at the **residence premises**.

7. **We** do not cover **bodily injury** arising out of the rendering of, or failure to render, professional services by an **insured person**.
8. **We** do not cover **bodily injury** to any person arising out of a professional service being conducted on the **residence premises** by any person.
9. **We** do not cover **bodily injury** caused by war or warlike acts, including, but not limited to, insurrection, rebellion or revolution.
10. **We** do not cover **bodily injury** to any person if the **bodily injury** arises from that person's employment by an **insured person**.
11. **We** do not cover **bodily injury**:
 - a) to a **tenant** if the **bodily injury** occurs on the part of the **residence premises** rented from an **insured person**; or
 - b) to an employee of a **tenant** if the **bodily injury** arises out of employment by the **tenant**.
12. **We** do not cover **bodily injury** to any person engaged in:
 - a) maintenance or repair of the **residence premises**;
 - b) alteration, demolition or new construction at the **residence premises**.
13. **We** do not cover **bodily injury** arising out of the sale, distribution, manufacture, service, use or gift of any alcoholic beverage(s) or any controlled or illegal substances.



14. **We** do not cover **bodily injury** or **personal injury** which, in whole or in part, arises out of, is aggravated by or results from mold, fungus, wet rot, dry rot or bacteria.

Section II Additional Protection

We will pay, in addition to the applicable limits of liability:

1. Claim Expenses

We will pay:

- all costs **we** incur in the settlement of any claim or the defense of any suit against an **insured person**;
- interest accruing on damages awarded until such time as **we** have paid, formally offered, or deposited in court the amount for which **we** are liable under this policy. Interest will be paid only on damages which do not exceed **our** limits of liability;
- premiums on bonds required in any suit **we** defend; **we** will not pay bond premiums in an amount that is more than **our Liability Protection-Coverage X** limit of liability. **We** have no obligation to apply for or furnish bonds;
- Up to \$150 per day for loss of wages and salary when **we** ask **you** to attend trials and hearings;
- any other reasonable expenses incurred by an **insured person** at **our** request.

2. Emergency First Aid

We will pay reasonable expenses incurred by an **insured person** for first aid to other persons at the time of an **occurrence** involving **bodily injury** covered under this policy.

Section II Conditions

1. What You Must Do After A Loss

In the event of **bodily injury**, **personal injury** or **property damage**, **you** must do the following:

- Promptly notify **us** or **our** agent stating:
 - your** name and policy number;
 - the date, the place and the circumstances of the loss;
 - the name and address of anyone who might have a claim against an **insured person**;
 - the names and addresses of any witnesses.
- Promptly send **us** any legal papers relating to the loss.
- At **our** request, an **insured person** will:
 - cooperate with **us** and assist **us** in any matter concerning a claim or suit;
 - help **us** enforce any right of recovery against any person or organization who may be liable to an **insured person**;
 - attend any hearing or trial;
 - assist **us** by collecting and giving evidence and obtaining witnesses.

Any **insured person** will not voluntarily pay any money, assume any obligations, or incur any expense, other than for first aid to others at the time of the loss as provided for in this policy.

Unless **we** are prejudiced by an insured person's failure to comply with the requirements under a) and b) above, any provision of this policy requiring the insured to give notice of action, occurrence or loss, or requiring the insured to forward demands, notice, summons or other legal process, shall not bar liability under **Liability Protection-Coverage X** of this policy.

2. What An Injured Person Must Do—Premises Medical Protection-Coverage Y

If someone is injured, that person, or someone acting for that person, must do the following:

- Promptly give **us** written proof of the loss. If **we** request, this must be done under oath.
- Give **us** written authorization to obtain copies of all medical records and reports.
- Permit doctors **we** select to examine the injured person as often as **we** may reasonably require.

3. Our Payment Of Loss—Premises Medical Protection-Coverage Y

We may pay the injured person or the provider of the medical services. Payment under this coverage is not an admission of liability by **us** or an **insured person**.

4. Our Limits Of Liability

Regardless of the number of insured persons, injured persons, claims, claimants or policies involved, **our** total liability under **Liability Protection-Coverage X** for damages resulting from one **occurrence** will not exceed the Limit Of Liability shown on the Policy Declarations. All **bodily injury**, **personal injury** and **property damage** resulting from continuous or repeated exposure to the same general conditions is considered the result of one **occurrence**.

Our total liability under **Premises Medical Protection-Coverage Y** for all medical expenses payable for **bodily injury** to any one person shall not exceed the each person Limit Of Liability shown on the Policy Declarations.

5. Bankruptcy

We are not relieved of any obligation under this policy because of the bankruptcy or insolvency of an **insured person**.

6. Our Rights To Recover Payment—Liability Protection-Coverage X

When **we** pay any loss, an **insured person's** right to recover from anyone else becomes **ours** up to the amount **we** have paid. An **insured person** must protect these rights and help **us** enforce them.

7. Action Against Us

- No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, unless there has been full compliance with all policy terms.
- No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under **Liability Protection-Coverage X**, unless the obligation of an **insured person** to pay has been finally



determined either by judgment against the **insured person** after actual trial, or by written agreement of the **insured person**, injured person and **us**, and the action against **us** is commenced within two years and one day of such judgment or agreement.

- c) No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under **Premises Medical Protection–Coverage Y**, unless such action is commenced within two years and one day after the date the expenses for which coverage is sought were actually incurred.
 - d) No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under **Section II Additional Protection**, unless such action is commenced within two years and one day after the date the claim expenses or emergency first aid expenses for which coverage is sought were actually incurred.
 - e) No one shall have any right to make **us** a party to an action to determine the liability of an **insured person**.
8. **Other Insurance—Liability Protection—Coverage X**
This insurance is excess over any other valid and collectible insurance except insurance that is written specifically as excess over the limits of liability that apply to this policy.
9. **Notice Of Settlement Of Liability Claim**
- a. **We** will notify the **insured person** in writing of any initial offer to compromise or settle a claim against the **insured person** under the liability section of this policy. **We** will give the **insured person** notice within 10 days after the date the offer is made.
 - b. **We** will notify the **insured person** in writing of any settlement of a claim against the **insured person** under the liability section of this policy. **We** will give the **insured person** notice within 30 days after the date of the settlement.

SECTION III—OPTIONAL PROTECTION

Optional Coverages You May Buy

The following optional coverages may supplement coverages found in **Section I** or **Section II** and apply only when they are indicated on the Policy Declarations. The provisions of this policy apply to each Optional Coverage in this section unless modified by the terms of the specific Optional Coverage.

1. **Building Codes—Coverage BC**

We will pay up to 10% of the amount of insurance on the Policy Declarations under **Dwelling Protection—Coverage A** to comply with local building codes after covered loss to **your dwelling** or when repair or replacement results in increased cost due to the enforcement of any building codes, ordinances or laws regulating the construction, reconstruction, maintenance, repair or demolition of **your dwelling**.

2. **Fire Department Charges—Coverage F**

The \$500 limit applying to the fire department service charges under **Section I Additional Protection** is increased to the amount shown on the Policy Declarations.

3. **Loss Assessments—Coverage G**

If **your** ownership of **your dwelling** requires that **you** be a member of, and subject to the rules of, an association governing areas held in common by all building owners as members of the association, **we** will pay **your** share of any special assessment charged against all building owners by the association up to the Limit of Liability shown on the Policy Declarations, when the assessment is made as a result of:

- a) sudden and accidental direct physical loss to the property held in common by all building owners caused by a loss **we** cover under **Section I** of this policy; or
- b) **bodily injury** or **property damage** covered under **Section II** of this policy.

However, this optional coverage shall apply only to special assessments made as a result of covered losses occurring while this optional coverage is in force.

Any reduction or elimination of payments for losses because of any deductible applying to the insurance coverage of the association of building owners collectively is not covered under this protection.

We will pay only when the assessment levied against the **insured person**, as a result of any one loss, for **bodily injury** or **property damage** exceeds \$500 and then only for the amount of such excess. This coverage is not subject to any deductible applying to **Section I** of this policy.

In the event of an assessment, this coverage is subject to all the exclusions applicable to **Sections I** and **II** of this policy and the **Section I** and **II Conditions**, except as otherwise noted.

This coverage is excess over any insurance collectible under any policy or policies covering the association of building owners.

4. **Satellite Dish Antennas—Coverage SD**

Personal Property Protection—Coverage C is extended to pay for sudden and accidental direct physical loss to **your** satellite dish antennas and their systems on **your residence premises**, subject to the provisions of **Personal Property Protection—Coverage C**.

The amount of coverage is shown on the Policy Declarations.

Policy Endorsement

Policy number:

438 532 211

Policy effective date:

December 12, 2025

Page 1 of 2



*The following endorsement changes your policy.
Please read this document carefully and keep it with your policy.*

Amendatory Endorsement - AP4830

In the **General** section, the **Loss Reduction, Affinity Relationship Program And Other Items** provision is added:

Loss Reduction, Affinity Relationship Program And Other Items

At **your** option:

1. **we** will provide **you**, or allow others to provide **you**, with one or more of the following subject to terms and availability under this provision:
 - a) items, memberships, special offers, merchandise, points, rewards, airline miles, services, classes, seminars, or other things of value designed to help **you** or other persons insured under this policy manage the risks **you** or they face, including, but not limited to, loss reduction or safety-related items; or
 - b) items, memberships, special offers, merchandise, points, rewards, airline miles, services, classes, seminars, or things of any other type that **we** think may be of value to **you** or someone else insured under this policy.
2. **we** may make, or allow others to make, one or more of the following: charitable contributions, donations, or gifts.

These items, memberships, special offers, merchandise, points, rewards, airline miles, services, classes, seminars, charitable contributions, donations, gifts, or other things of value may be provided in any form, including, but not limited to, redemption codes, coupons, vouchers, and gift cards.

All other policy terms and conditions apply.

*The following endorsement changes your policy.
Please read this document carefully and keep it with your policy.*

Amendatory Endorsement - AP4970

Throughout the policy, when determining the actual cash value of the loss, the costs necessary to repair, rebuild or replace the destroyed, damaged or stolen property may be depreciated. Such costs subject to depreciation may include, but are not limited to, goods, materials, equipment, labor, overhead and profit, taxes, fees or similar charges.

All other policy terms and conditions apply.

*The following endorsement changes your policy.
Please read this document carefully and keep it with your policy.*

Policyholder Disclosure Notice Of Terrorism Insurance Coverage - AP3337-4

The federal Terrorism Risk Insurance Act, as amended, (the Act), establishes a temporary federal Program (the federal Program) providing for a system of shared public and private compensation for certain insured commercial property and casualty losses resulting from "acts of terrorism," as defined in the Act.

The Act, as amended in 2019, defines an "act of terrorism" as any act or acts that are certified by the Secretary of the Treasury—in consultation with the Secretary of Homeland Security, and the Attorney General of the United States—to be an act of terrorism; to be a violent act or an act that is dangerous to human life, property, or infrastructure; to have resulted in damage within the United States, or outside the United States in the case of certain air carriers or vessels or the premises of a United States mission; and to have been committed by an individual or individuals as part of an effort to coerce the civilian population of the United States or to influence the policy or affect the conduct of the United States Government by coercion.

Your insurance coverage includes coverage for losses caused by "acts of terrorism" to which the federal Program applies. This coverage is subject to all other terms, conditions, limitations and exclusions of **your** policy.

Disclosure Of Federal Share Of Compensation For Insured Losses

Insured losses caused by "acts of terrorism" to which the federal Program applies would be partially reimbursed by the United States Government under a formula established by federal law. Under that formula, the United States Government generally reimburses 80% beginning on January 1, 2020, of covered terrorism losses exceeding the statutorily established deductible paid by the insurance company providing the coverage.

You should also know that the Act, contains a \$100 billion cap that limits United States Government reimbursement as well as insurers' liability for losses resulting from certified acts of terrorism when the amount of such losses in any one calendar year exceeds \$100 billion. If the aggregate insured losses for all insurers exceed \$100 billion, **your** coverage may be reduced.

Disclosure of Premium

The portion of **your** annual premium that is attributable to coverage for losses caused by "acts of terrorism" to which the federal Program applies is \$0.00.

*The following endorsement changes your policy.
Please read this document carefully and keep it with your policy.*



Texas Amendatory Endorsement - AS512

- I. In **Section I Conditions**, under item 14., **Action Against Us**, item b) is replaced by the following:
- b) The action is commenced within two years and one day from the date the cause of action first accrues.
- II. In **Section II Conditions**, item 7., **Action Against Us**, is replaced by the following:
7. **Action Against Us**
- a) No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, unless there has been full compliance with all policy terms.
- b) No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under **Liability Protection-Coverage X**, unless the obligation of an **insured person** to pay has been finally determined either by judgment against the **insured person** after actual trial, or by written agreement of the **insured person**, injured person and **us**, and the action against **us** is commenced within two years and one day from the date the cause of action first accrues.
- c) No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under **Premises Medical Protection-Coverage Y**, unless such action is commenced within two years and one day from the date the cause of action first accrues.
- d) No one may bring an action against **us** in any way related to the existence or amount of coverage, or the amount of loss for which coverage is sought, under **Section II Additional Protection**, unless such action is commenced within two years and one day from the date the cause of action first accrues.
- e) No one shall have any right to make **us** a party to an action to determine the liability of an **insured person**.

All other policy terms and conditions apply.

Policy Endorsement

Policy number:

438 532 211

Policy effective date:

December 12, 2025

Page 1 of 2



*The following endorsement changes your policy.
Please read this document carefully and keep it with your policy.*

Additional Insured For Landlord's Package Policy Texas Limited Liability Company - AS348

I. The following changes are made in the **General** section of the policy:

A. Under the provision titled **Definitions Used In This Policy**, the following definition is added:

LLC—means the entity listed under Limited Liability Company, below.

B. The definition of **insured person(s)** is replaced by the following:

Insured person(s)—means:

- a) if **you** are shown on the Policy Declarations as an individual and **you** are a sole proprietor, **you** and **your** resident spouse.
- b) the **LLC**, subject to the following limitations:
 - i) in **Section I—Your Property**, under **Personal Property Protection—Coverage C**, the **LLC** is an insured person only with respect to **Property We Cover Under Coverage C** held solely by the **LLC** at the time of loss; and
 - ii) in **Section II—Liability Protection And Premises Medical Protection** the **LLC** is an insured person only with respect to **bodily injury, personal injury or property damage** arising out of the operations necessary or incidental to the ownership, maintenance or use of the **residence premises**.
- c) if **you** are shown on the Policy Declarations as a partnership or joint venture, the named partnership or joint venture, including any of its partners or members individually while acting within the course and scope of their duties in connection with the ownership, maintenance or use of the **residence premises**.
- d) if **you** are shown on the Policy Declarations as an organization other than a partnership or joint venture, the organization directors, trustees or governors of the organization while acting within the course and scope of their duties in connection with the ownership, maintenance or use of the **residence premises**.
- e) **your** employees, while acting within the course and scope of their employment in connection with the ownership, maintenance or use of the **residence premises**. This applies regardless of whether the employees are **LLC** members.
- f) any person or organization while acting as **your** real estate manager for the **residence premises**.

This policy does not apply to **bodily injury, personal injury or property damage** arising from the conduct of any partnership, joint venture or organization which is not named on the Policy Declarations as the insured.

C. The following is added to the provision titled

Cancellation:

If the **residence premises** is titled in the name of an **LLC**, we will cancel this policy if **you** terminate **your** association with the **LLC**. This provision will not apply if the **residence premises** is re-titled in **your** name.

II. In **Section I Conditions**, the following changes are made:

A. The following is added to the provision titled **Our Settlement Of Loss**:

We will settle any covered loss with **you** and the **LLC** listed below unless some other person or entity is named in the policy or is legally entitled to receive payment.

B. The provision titled **No Benefit To Bailee** is replaced by the following:

No Benefit To Bailee

This insurance will not benefit any person or organization who may be caring for or handling **your** property for a fee. However, this provision does not apply to the **LLC**.

III. In **Section II—Liability Protection And Premises Medical Protection**, the following changes are made under **Liability Protection—Coverage X**:

A. The provision titled **Losses We Cover Under Coverage X** is replaced by the following:

Losses We Cover Under Coverage X:

Subject to the terms, conditions and limitations of this policy, **we** will pay compensatory damages which an **insured person** becomes legally obligated to pay because of **bodily injury, personal injury, or property damage** arising from a covered **occurrence**. **We** will not pay any punitive or exemplary damages, fines or penalties.

We may investigate or settle any claim or suit for covered damages against an **insured person**. If an **insured person** is sued for these damages, **we** will provide a defense with counsel of **our** choice, even if the allegations are groundless, false or fraudulent. **We** are not obligated to pay any claim or judgment after **we** have exhausted our limit of liability. **We** will defend the **LLC** in the case of **bodily injury, personal injury or property damage** arising from the conduct, act or failure to act of **LLC** members solely in connection with matters related to the **residence premises**. However, **we** are not obligated to provide a defense to an **LLC** member other than **you** and **your** resident spouse unless that **LLC** member was also employed by the **LLC** and acting within the course and scope of their employment in connection with the ownership, maintenance or use of the **residence premises**.

B. The following exclusions are added under **Losses We Do Not Cover Under Coverage X**:

We do not cover **bodily injury** to any employee of the **LLC** unless the employee is performing duties arising out of and in the course of



employment in connection with the maintenance or use of the **residence premises**.

All other policy terms and conditions apply.

We do not cover **bodily injury, personal injury** or **property damage** arising out of any:

- a) act or failure to act; or
- b) decision or failure to decide

by an **LLC** member other than as provided in **Section II—Liability Protection And Premises Medical Protection, Liability Protection—Coverage X**.

IV. In **Section III—Optional Protection, Optional Coverages You May Buy, Loss Assessments—Coverage G**, is replaced by the following:

3. **Loss Assessments—Coverage G**

If ownership of **your dwelling** requires that **you** or the **LLC** be a member of, and subject to the rules of, an association governing areas held in common by all building owners as members of the association, **we** will pay **your** share or the **LLC's** share of any special assessment charged against all building owners by the association up to the Limit Of Liability shown on the Policy Declarations, when the assessment is made as a result of:

- a) sudden and accidental direct physical loss to the property held in common by all building owners caused by a loss **we** cover under **Section I** of this policy; or
- b) **bodily injury** or **property damage** covered under **Section II** of this policy.

However, this optional coverage shall apply only to special assessments made as a result of covered losses occurring while this optional coverage is in force.

Any reduction or elimination of payments for losses because of any deductible applying to the insurance coverage of the association of building owners collectively is not covered under this protection.

We will pay only when the assessment levied against the **insured person**, as a result of any one loss, for **bodily injury** or **property damage** exceeds \$500 and then only for the amount of such excess. This coverage is not subject to any deductible applying to **Section I** of this policy.

In the event of an assessment, this coverage is subject to all the exclusions applicable to **Sections I** and **II** of this policy and the **Section I** and **II Conditions**, except as otherwise noted.

This coverage is excess over any insurance collectible under any policy or policies covering the association of building owners.

Limited Liability Company:

W B Group LLC

Mailing Address:

177 Kingsway Dr Wimberly TX 77676

Important notices

Policy number: **438 532 211**
Policy effective date: December 12, 2025

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Dwelling Profile

Your Dwelling Protection-Coverage A limit is: \$184,180

The Dwelling Protection-Coverage A limit shown above, which is based on information that you have provided to us, is also shown on the enclosed Policy Declarations for your insurance policy.

The decision regarding the limit amount applicable to your Dwelling Protection-Coverage A is your decision to make, as long as, at a minimum, you purchase a Coverage A limit equal to the estimated cost as determined by Allstate and do not exceed maximum coverage limitations established by Allstate (we will let you know if the amount of insurance that you request is greater than that which we allow).

It is important to keep in mind that the minimum Coverage A limit for which we will insure your property reflects an estimated replacement cost based on selected data that was available to us when we made this estimate (this information is described further in the "Rating Information" section of your Policy Declarations). The actual amount it will cost to replace your covered property cannot be known until after a covered total loss has occurred, so it is important that you let us know now, before a covered total loss occurs, if you would like to change your Coverage A limit.

How is the replacement cost estimated?

Many factors can affect the cost to replace your property, including age, size, and type of construction. For example, the estimated replacement cost uses construction data, such as labor and materials that are available to us when we made this estimate. This estimate is also based on characteristics of the property, which include information that you provided to us. Please note that if you have chosen to insure your dwelling for a limit that is greater than our estimate (which is the minimum amount for which we will insure your dwelling), the amount shown above actually reflects this higher amount. If you would like to make any changes to the Coverage A limit, please contact us.

Note to customers renewing their policy

The estimated replacement cost for your property may have changed since your last renewal. This is because Allstate uses the property characteristics that you have provided to us to recalculate and update the estimated replacement cost. Using updated labor and material rates for your zip code, Allstate takes the property characteristics that you have provided and determines the updated estimated replacement cost. The information about your property's characteristics is provided in the "Rating Information" section of your Policy Declarations.

Please note: Your Dwelling information is used to estimate your home replacement cost. It's important to review and update this information so we're using the most accurate details to estimate your home's replacement value.

If the information about your property shown in your Declarations requires any change or if you have any questions or concerns about the information contained in this Important Notice, please contact your Allstate representative.

X67676-4

Address Confirmation Request

Please Confirm Your Current Address

As you may know, we base our property insurance rates, in part, on where a customer's property is located. According to our records, the location of the dwelling your property policy covers is:

Address: **805 High Mesa Dr**
City/Village/Township: **Wimberley**
State: **TX**
Zip: **78676-9560**
County: **Hays**

We ask that you please review this information to make sure the address we've listed above is accurate. If you see any information that is incorrect, please contact your Allstate representative as soon as possible and provide them with the correct information. Once we receive your updated information, we will send you an Amended Declarations Page and, if necessary, adjust your insurance premium to reflect the updated information.

If the information above is correct, you do not need to contact us. Feel free to contact your Allstate representative with any questions you may have about this notice.

X72770

Information Regarding Flood Damage Coverage

Texas law requires that we provide you with this notice regarding flood damage coverage.

Please read this notice carefully. In addition, it is important to read all of your property policy documents to confirm the coverage your policy provides.



NOTICE

- **Flood Insurance: You may also need to consider the purchase of flood insurance. Your insurance policy does not include coverage for damage resulting from a flood even if hurricane winds and rain caused the flood to occur. Without separate flood insurance coverage, you may have uncovered losses caused by a flood. Please discuss the need to purchase separate flood insurance coverage with your insurance agent or insurance company, or visit www.floodsmart.gov.**

If you have any questions about this notice or your policy coverage, you can contact your Allstate Agent or representative, call 1-800 ALLSTATE® (1-800-255-7828), or visit www.allstate.com. We're here to help!

XC7124**Certain Losses Are Excluded**

Your policy contains several exclusions, which are listed in the sections titled **Losses We Do Not Cover** throughout the policy. All these exclusions can impact the coverage provided by your policy. Please review your policy, including all the policy exclusions, carefully.

Among the other exclusions, your policy does not provide Dwelling Protection, Other Structures Protection, or Personal Property Protection coverage for loss caused by or consisting of any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants, including, but not limited to:

- lead in any form;
- asbestos in any form;
- radon in any form; or
- oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the residence premises.

These exclusions do not apply to heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location.

Your policy also does not provide Liability Protection or Premises Medical Protection for bodily injury, personal injury or property damage which results in any manner from any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants. These exclusions do not apply to:

- bodily injury, personal injury or property damage which results from heat, smoke or fumes from a fire which becomes uncontrollable or escapes from its intended location; and
- bodily injury or personal injury which results from the sudden and accidental discharge, dispersal, release or escape of carbon monoxide from a heating system, an appliance for heating water, or a household appliance located at the residence premises.

Your policy does not cover any liability imposed upon any insured person by any governmental authority for bodily injury or personal injury which results in any manner from, or for property damage consisting of or caused by, any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants.

Your Landlord's Package Policy also does not cover any loss, cost or expense arising out of any request, demand, or order that any insured person test for, monitor, clean up, remove, contain, treat, detoxify, or neutralize, or in any way respond to or access the effects of any type of vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants, or pollutants.

In the Liability Protection and Premises Medical Protection exclusions described above, vapors, fumes, acids, toxic chemicals, toxic gasses, toxic liquids, toxic solids, waste materials, irritants, contaminants or pollutants include, but are not limited to:

- lead in any form;
- asbestos in any form;
- radon in any form; or
- oil, fuel oil, kerosene, liquid propane or gasoline intended for, or from, a storage tank located at the residence premises.

XC2691**How We Compensate Our Agencies**

The company listed below uses local agencies to assist customers with their insurance decision-making process by providing customers with information and high quality service. These agencies provide numerous services to customers on



the company's behalf. Agencies are paid a commission by the company for selling and servicing the company's insurance policies and may be eligible to receive additional compensation and rewards based on performance.

Allstate Indemnity Company

Important Information About Your Credit-Based Insurance Score

Please take a moment to read the notice immediately following this insert containing important information about our use of consumer reports and your rights under the federal Fair Credit Reporting Act. In that notice, we explain why we order credit reports and explain how important it is for you to check the accuracy of that information.

In the state where we issued your policy we are required by law to inform you of certain factors in your credit report(s) adversely affecting your credit-based insurance score. The most significant of these factors are:

The number of months since the most recent delinquent payment: A delinquent payment is one made over 30 days late. Delinquent payments within the past five years may have an adverse effect on an insurance score and the more recent the delinquency, the greater the adverse effect. Please note that over time the impact of this type of delinquency on your insurance score will decrease and even disappear if there are no new delinquencies. Avoiding future delinquencies may benefit your insurance score.

The presence of a derogatory item within the past five years: A derogatory item may include a delinquency, a collection, or a derogatory public record, such as a bankruptcy, judgment, lien, repossession, or foreclosure. Avoiding derogatory items in the future may lead to a more favorable insurance score.

The average number of months that accounts are listed on the credit report: Generally, the longer your average age of accounts, the more favorable your insurance score will be. Those with the most favorable insurance scores often have an average age of accounts of 14 years or longer.

The number of revolving accounts opened in the last two years: A revolving account is one in which you have the option to pay the balance off each month, or carry part of the balance over to the next month. Generally, if you have not opened a revolving account in the past two years, you may receive a more favorable insurance score. Please note that we do not consider

car loans and/or mortgage-related accounts when determining the number of recently opened accounts.

You may request a copy of your TransUnion Personal Credit Report by writing to:

X72006-1 TransUnion National Disclosure Center
2 Baldwin Place
P.O. Box 1000
Chester, PA 19022
1(888)503-0048
www.transunion.com

XF4

Consumer Report Information and Its Impact on Your Insurance

Many factors play a role in determining your insurance premium. Among the factors we consider are the following: where you live, the coverages and limits you've chosen and discount eligibility. In addition, we use consumer reporting agency information for eligibility and rating purposes. The federal Fair Credit Reporting Act requires us to inform you when we take adverse action based on a consumer report.

As permitted by law, we ordered credit report information about you - the named insured on the policy.

Based in whole or in part on the information provided to us by the credit reporting agency listed below, Allstate Indemnity Company is unable to offer you a lower rate: based on the credit information available to us.

You May Request a Free Credit Report

Under Section 612 of the Fair Credit Reporting Act, you have the right to obtain a free copy of your consumer report from the consumer reporting agency listed below if you request it within 60 days of receiving this notice (even if the report did not contain any information regarding credit status). You also have the right, under Section 611 of the Fair Credit Reporting Act, to dispute with the consumer reporting agency listed below the accuracy or completeness of any information in any report(s) furnished by the agency.

If you'd like a free copy of your credit report, be sure to make your request within 60 days of receiving this notice. You can contact the reporting agency at:

TransUnion National Disclosure Center
2 Baldwin Place
P.O. Box 1000



Important notices

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Chester, PA 19022

Phone: 1-888-503-0048

www.transunion.com

Please keep in mind that the consumer reporting agency did not make the decision to take this adverse action and will not be able to provide you with any specific reasons regarding why we took this action. Also, any changes to your name or address within the past two years can affect the completeness of your report. If your information has changed, please let your insurance representative know.

Have Questions? Please Contact Your Allstate Representative

We hope you will take advantage of these rights and help us give you the lowest premium we can provide. If you have any questions about the information contained in this notice, or about your insurance in general, please contact your insurance representative.

The Connection Between Credit History and Premium

We determine premiums using the information you provide on your insurance application, as well as using other factors. Certain credit report information has proved an effective predictor of insurance losses. It also allows us to keep costs competitive by helping make it possible for customers who are less likely to experience losses to pay less for their insurance. Keep in mind we use credit history in addition to, not instead of, our other characteristics. By considering this information, we can match likelihood of loss to premium even more precisely, and we think that's good for our customers. It allows us to keep insurance costs as competitive as possible for the greatest number of policyholders. You can also learn more about our use of credit information, including ways you may be able to improve your insurance score, by visiting allstate.com.

XF1

Important notices

Policy number:

438 532 211

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December 12, 2025

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CONSUMER BILL OF RIGHTS

Homeowners, Dwelling, and Renters Insurance

What is the Bill of Rights?

It is a basic outline of important rights you have under Texas law. Insurance companies must give you this Bill of Rights with your policy. It is important to read and understand your policy.

The Bill of Rights is **not**:

- A complete list of all your rights,
- Part of your policy, or
- A list of everything that you are responsible for.

Questions about these rights?

- If you are not sure about anything in your policy, ask your agent or insurance company.
- If you have questions or a complaint, contact the Texas Department of Insurance (TDI) at:

Call with a question: 1-800-252-3439

Email with a question: ConsumerProtection@tdi.texas.gov

File a complaint through the website:

www.tdi.texas.gov/consumer/get-help-with-an-insurance-complaint.html

- To learn more about insurance, visit www.opic.texas.gov or call the Office of Public Insurance Counsel (OPIC) at 1-877-611-6742.

AVISO: Este documento es un resumen de sus derechos como asegurado. Tiene derecho a llamar a su compañía de seguros y obtener una copia de estos derechos en español. Además, puede ser que su compañía de seguros tenga disponible una versión de su póliza en español.



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Where to Get Information

- 1. Your insurance company.** When you get a copy of your policy you will also get an "Important Notice" from the company. The notice explains how to contact your company and how to file a complaint. You may request a complete copy of your policy from your company at any time.
- 2. Your declarations page.** The declarations page, also called the "dec page," shows: (a) the name and address of your insurance company, (b) the location of the insured property, (c) the dates your policy is in effect, and (d) the amounts and types of coverage.
Your company must list the exact dollar amount of each deductible in your policy. The declarations page, or a separate page, must also list any part of your policy that changes any deductible amount.
- 3. The Texas Department of Insurance (TDI).** You have the right to call TDI for free at 1-800-252-3439 for information and help with a complaint against an insurer. You can also find information on the TDI website at www.tdi.texas.gov.
- 4. Resources for shopping for insurance.** The Office of Public Insurance Counsel (OPIC) and TDI developed www.HelpInsure.com to help you compare rates and coverages for different insurance companies. OPIC also has an online tool to help you compare policies. You can find this policy comparison tool at www.opic.texas.gov.

What You Should Know When You File a Claim

- 5. Deadlines for processing claims and payments for your damages.** You should file your claim with your insurance company as soon as possible. When you file a claim for your damages, the insurance company must meet these deadlines:
 - **Within 15 days after you file a claim:** The company must let you know they received your claim. The company must also start their investigation and ask you for any other information they need.
 - **Within 15 business days after they get all the information they need:** The company must approve or deny your claim in writing. They can extend this deadline up to **45 days** from the date they: (a) let you know they need more time and (b) tell you why.
 - **Within 5 business days after they let you know your claim is approved:** The company must pay the claim.
Note: TDI can extend these deadlines by 15 more days if there is a weather-related catastrophe.

If your company fails to meet these deadlines, you may be able to collect the claim amount, interest, and attorney's fees.

- 6. Written explanation of claim denial.** Your insurance company must tell you in writing why your claim or part of your claim was denied.
- 7. Reasonable investigation.** Your insurance company cannot refuse to pay your claim without a reasonable investigation of the claim. You should keep records of all claim communications (including notes from phone calls) and other claim documentation (including damage estimates and receipts).
- 8. Information not required for processing your claim.** Your insurance company can only ask for information reasonably needed for their claim investigation. However, they cannot ask for your federal income tax returns unless: (a) they get a court order or (b) your claim involves a fire loss, loss of profits, or lost income.
- 9. Right to contract with a public insurance adjuster.** Your insurer cannot include a provision in your policy that prohibits you from contracting with a licensed public insurance adjuster to act on your behalf in negotiating for or effecting the settlement of a claim.
- 10. Release of claim payments from lenders.** Often an insurance company will make a claim payment to you and your lender. If your lender gets the payment:
 - **No later than 10 days after receiving it they must:** (a) notify you and (b) tell you what you must do so the money can be released.
 - **No later than 10 days after you ask for the money, they must:** (a) send the money to you, or (b) tell you how to get the money released.

If your lender does not: (a) provide the notices mentioned above or (b) pay the money after all the requirements have been met, the lender must pay you interest on the money.
- 11. Notice of liability claim settlement.** Liability means you are responsible for other people's injuries or damage to their property. Your insurance company must let you know in writing:
 - About the first offer to settle a claim against you within **10 days** after the offer is made.
 - About any claim settled against you within **30 days** after the date of the settlement.



Who to Contact for Claim Disagreements

12. Claim disagreements. You can dispute the amount of your claim payment or what is covered under your policy. You can:

- Contact your insurance company.
- Contact an attorney to advise you of your rights under the law. The State Bar of Texas can help you find an attorney.
- Pay a licensed public adjuster to review the damage and handle the claim.
- File a complaint with TDI.

What You Should Know about Renewal, Cancellation and Nonrenewal

Renewal means that your insurance company is extending your policy for another term.

Cancellation means that, **before the end of the policy period**, the insurance company:

- Terminates the policy;
- Gives you less coverage or limits your coverage; or
- Refuses to give additional coverage that you are entitled to under the policy.

"Refusal to renew" and **"nonrenewal"** are terms that mean your coverage ends **at the end of the policy period**. The policy period is shown on the declarations page of your policy.

13. Notice of premium increase. If your insurance company plans to increase your premium by 10% or more on renewal, your company must send you notice of the rate increase at least **30 days** before your renewal date.

14. Insurance company cancellation of homeowners policies. If your homeowners policy has been in effect for **60 days or more**, your company can only cancel your policy if:

- You don't pay your premium when it is due;
- You file a fraudulent claim;
- There is an increase in the risk covered by the policy that is: (a) within your control and (b) would make your premium go up; or
- TDI decides that keeping the policy violates the law.

If your policy has been in effect for **less than 60 days**, your company can only cancel your policy if:

- One of the reasons listed above applies;

- They reject a required inspection report within **10 days** after getting the report. The report must be done by a licensed or authorized inspector and cannot be more than 90 days old; or
- They find something that creates an increase in risk that you did not include in your application and is not related to a prior claim.

15. Insurance company cancellation of other residential property policies. After your policy has been in effect for **90 days**, your company can only cancel your policy if:

- You don't pay your premium when it is due;
- You file a fraudulent claim;
- There is an increase in the risk covered by the policy that is: (a) within your control and (b) would make your premium go up; or
- TDI decides that keeping the policy violates the law.

16. Notice of cancellation. If your insurance company cancels your policy, they must let you know by mail at least **10 days** before the effective date of the cancellation. Check your policy because your company may give you more than 10 days' notice.

17. Your right to cancel. You can cancel your policy at any time and get a refund of the unearned premium.

18. Refund of premium. If you or your insurance company cancel your policy, the company must refund any unearned premium within 15 business days from:

- the date the company receives notice of the cancellation or
- the date of cancellation, whichever is later.

You must let your company know you want the refund sent to you. If not, they may refund the remaining premium by giving you a premium credit on the same policy.

19. Limits on using claims history for nonrenewal. Your insurance company cannot refuse to renew your policy based on claims for damage from natural causes, including weather-related damage; or claims that are filed but not paid or payable under the policy.

Appliance-related water damage claims. Your insurance company cannot refuse to renew your policy based on an appliance-related water damage claim if:

- The damage has been properly repaired or remediated; and
- The repair or remediation was inspected and certified.



However, your insurance company may refuse to renew your policy based on appliance-related water damage claims if:

- Three or more claims were filed and paid (including a claim filed by a prior owner on your property); or
- You: (a) file 2 claims within a three-year period; and (b) after the second claim, your company gives you written notice that filing a third appliance-related claim could result in your policy not being renewed; and
- You file a third claim.

Claims other than appliance-related water damage claims. Your insurance company cannot refuse to renew your policy based on other claims unless:

- You: (a) file 2 claims within a three-year period; and (b) after the second claim, your company gives you written notice that filing a third claim could result in your policy not being renewed; and
- You file a third claim.

20. Limits on using claims history to increase premium. Your insurance company cannot increase your premium based on claims for damage from natural causes, including weather-related damage; or claims that are filed but not paid or payable under your policy.

Appliance-related water damage claims. Your company cannot increase your premium based on a prior appliance-related water damage claim if:

- The damage has been properly repaired or remediated; and
- The repair or remediation was inspected and certified.

However, your insurance company may increase your premium based on prior appliance-related water damage claims if:

- Three or more claims were filed and paid (including a claim filed by a prior owner on your property)

Claims other than appliance-related water damage claims. Your insurance company cannot increase your premium based on other claims unless:

- You file 2 or more claims within a three-year period.

21. Right to ask questions. You can ask your insurance company a question about your policy. They cannot use your questions to deny, nonrenew, or cancel your coverage. Your questions also cannot be used to determine your premium.

For example, you may ask:

- General questions about your policy;
- Questions about the company's claims filing process; and
- Questions about whether the policy will cover a loss, unless the question is about damage: (a) that occurred and (b) that results in an investigation or claim.

22. Limit on using credit information to nonrenew your policy. An insurance company cannot refuse to renew your policy solely because of your credit.

23. Protections from discrimination. An insurance company cannot refuse to insure you; limit the coverage you buy; refuse to renew your policy; or charge you a different rate based on your race, color, creed, country of origin, or religion.

24. Protection for low-value property. An insurance company cannot refuse to renew your policy because the property value is low.

25. Protection for older houses. An insurance company cannot refuse to renew your policy based on the age of your property. However, they can refuse to renew your policy based on the condition of your property, including your plumbing, heating, air conditioning, wiring, or roof.

26. Notice of nonrenewal. Your insurance company must send you a notice that they are not renewing your policy. They must let you know at least **60 days** before your policy expires, or you can require them to renew your policy.

27. Notice of a "material change" to your policy. If your insurance company does not want to cancel or nonrenew your policy, but wants to make certain material changes, then they must explain the changes in writing at least **30 days** before the renewal date. Material changes include:

- Giving you less coverage;
- Changing a condition of coverage; or
- Changing what you are required to do.

Instead of a notice of "material change" a company may choose to not renew your existing policy. If so, the company has to send a nonrenewal letter, but may still offer you a different policy.

Note: A company cannot reduce coverage during the policy period unless you ask for the change. If you ask for the change, the company does not have to send you a notice.



Important notices

Policy number:

438 532 211

Policy effective date:

December 12, 2025

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28. Written explanation of cancellation or nonrenewal. You can ask your insurance company to tell you in writing the reasons for their decision to cancel or not renew your policy. The company must explain in detail why they cancelled or nonrenewed your policy.

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Privacy Statement

Policy number:

438 532 211

Policy effective date:

December 12, 2025

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Facts What does Allstate do with your personal information?

Why? Financial companies choose how they share your personal information. Federal and state laws give consumers the right to limit some but not all sharing. These laws also require us to tell you how we collect, share, and protect your personal information. Please read this notice carefully to understand what we do.

What? The types of personal information we collect and share depend on the product or service you have with us. This information can include:

- Name, phone number, home and email addresses, and other contact information, marital status, and family member information
- Social Security number, driver's license number, and driving records
- Healthcare information, customer file including claims and transaction history, credit information, and credit scores

How? Financial companies need to share customers' and former customers' personal information to run their everyday business. In the section below, we list the reasons companies can share their customers' personal information; the reasons Allstate chooses to share; and whether you can limit this sharing.

Reasons we can share your personal information	Does Allstate share?	Can you limit this sharing?
For our everyday business purposes — such as to process your transactions, maintain your account(s), respond to court orders and legal investigations, prevent fraud, or report to credit bureaus	Yes	No
For our marketing purposes — to offer our products and services to you	Yes	No
For joint marketing with other financial companies	Yes	No
For our affiliates' everyday business purposes — information about your transactions and experiences	Yes	No
For our affiliates to market to you	Yes	Yes
For nonaffiliates to market to you	No	No

Limit sharing

Call 1-800-856-2518 and our menu will prompt you through your choice(s)

Visit us online: allstate.com

Please note: If you are a new customer, we can begin sharing your information 30 days from the date we sent this notice. When you are no longer our customer, we continue to share your information as described in this notice, however, you can contact us at any time to limit our sharing. **If you have previously opted out, your request remains on file and you do not need to opt out again.**

Questions?

Call 1-800-856-2518 or for more information about our privacy practices, visit us online at allstate.com/privacy to view our Online Privacy Statement.

Who we are

This Privacy Statement describes the privacy practices of Allstate Insurance Company and its Allstate branded auto, home and business insurance affiliates. For additional information about affiliates, see below and go to the Underwriting Companies link on Allstate.com.



What we do

How does Allstate protect my personal information?

We use a variety of physical, technical and administrative security measures that help to safeguard your personal information. We require our employees and persons or organizations that represent us to protect your information and keep it confidential.

How does Allstate collect my personal information?

We collect your personal information, for example, when you

- Apply for insurance or give us your contact information
- Pay your insurance premium or file an insurance claim

We also collect your personal information from others, such as affiliates, credit bureaus, and insurance support organizations (which may retain and share your information with others).

Why can't I limit all sharing?

Federal and state law only gives you the right to limit

- Affiliates from using your information to market to you
- Sharing for nonaffiliates to market to you

State laws may give you additional rights to limit sharing. See below for more on those rights.

How else does Allstate use and share personal information?

We will also disclose your personal information without notice when necessary to: (a) comply with the law or requests from regulatory and law enforcement authorities; (b) protect and defend our customers, rights or property; (c) act under exigent circumstances to protect the personal safety of our customers or the public; (d) transfer corporate ownership; (e) conduct research, actuarial studies or audits; and (f) allow an insurance institution, producer, medical institution/professional or support organization to process insurance claims, verify coverage or benefits or perform other insurance functions. We will not use your medical information for marketing purposes without your consent.

What happens when I limit sharing for an account I hold jointly with someone else?

Your choices will apply to everyone on your account.

How can I review or correct my data?

You may access your recorded personal information under our possession and to request a correction, amendment, or deletion of such recorded personal information by sending a request to Allstate Insurance Company Customer Privacy Inquiries, PO Box 660 598, Dallas, TX 75266-0598. We may not be able to provide information relating to investigations, claims, litigation, and other matters.

Definitions

Affiliates — Companies related by common ownership or control including Allstate insurance companies offering home, auto and business insurance; Allstate Assurance Company and their life and retirement affiliates; Allstate Financial Services; American Heritage Life Insurance Company (Allstate Benefits),

Allstate roadside services and motor club companies and Signature roadside services and motor club companies, Allstate Dealer Services, National General Insurance Group and its affiliates, Castle Key Insurance Company and Castle Key Indemnity Company, North Light Specialty Insurance Company, SquareTrade (Allstate Protection Plans), InfoArmor (Allstate Identity Protection), Avail, and Arity.

Nonaffiliates — Companies not related by common ownership or control. They can be financial and nonfinancial companies. Allstate does not share your information with nonaffiliates for marketing purposes.

Joint Marketing — A formal agreement between nonaffiliated financial companies that together market financial products or services to you.

Other important information

We reserve the right to change our privacy practices, procedures, and terms.

(ed. 10/2022)

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